PROGRAM SERVICES AGREEMENT

THIS PROGRAM SERVICES AGREEMENT (this "**Agreement**") dated this **8th day of June**, **2026** ("**Effective Date**") is by and between Zenus Bank International, Inc., having its principal office is located at 252 Ave. Ponce de León, 19th Fl., San Juan, Puerto Rico 00918 ("**Zenus**"), and Mal Money, Inc., a Billings, Montana company having its principal offices at 821 N. 27th #2066, Billings, Montana 59101 ("**Program Manager**"). Program Manager and Zenus are collectively referred to as the "**Parties**" and are each individually referred to as a "**Party**."

R E C I T A L S

WHEREAS, Zenus is an International Financial Entity ("**IFE**") licensed and regulated by Puerto Rico's Office of the Commissioner of Financial Institutions ("**Commissioner**");

WHEREAS, Zenus, among other things, is in the business of taking deposits, issuing debit cards, and offering payments services to the customers outside of Puerto Rico;

WHEREAS, Program Manager offers financial services, including deposit services, to end users outside of the Puerto Rico, and Program Manager markets and operates a global platform through which it offers customers or potential customers ("**Clients**") the ability to obtain financial products and services ("**Platform**"); and

WHEREAS, the Parties desire to enter an arrangement as more fully set forth herein through which the Parties will offer Clients and End Users access to certain of Zenus' services and products.

NOW, THEREFORE, in consideration of the premises and mutual covenants set forth herein, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

ARTICLE 1
RULES OF INTERPRETATION; DEFINITIONS

1.1 **Definitions**. Except as otherwise specifically indicated, the following terms shall have the following meanings in this Agreement (such meanings to be equally applicable to both the singular and plural forms of the terms defined):

"**ACH**" means the Automated Clearinghouse network, governed by the rules of NACHA.

"**Affiliate**" means, with respect to any Person, any other Person that directly or indirectly controls, is controlled by or is under common control with such Person. For the purposes of this definition, "control" means the power to direct the management and policies of a Person, directly or indirectly, whether through the ownership of voting securities, by contract or otherwise; and the terms "common control" and "controlled" have meanings correlative to the foregoing.

"**AML**" means anti-money laundering.

"**Applicable Law**" means the (i) Network Rules, (ii) the laws, court opinions, rules, and regulations of the United States or of any State therein, as applicable, or the various agencies, departments or administrative or governmental bodies thereof, and any regulatory guidance, determinations of (or agreements with) a Regulatory Authority and directions or instructions from (or agreements with) any Regulatory Authority, to the extent applicable to the FBO Account and each Client Sub-Account or End User Sub-Account, or as otherwise applicable to a Party, as all the same may be amended and in effect from time to time, and (iii) in respect of Program Manager or the Services provided by Program Manager, the laws, regulations, court determinations, and any requirements of any governmental authority of any country, state, or jurisdiction (other than the United States) in which Program Manager operates, provides Services, advertises or manages the Program.

"**Applicant**" means any Person who requests an End User Sub-Account or Card as part of the Program.

"Approval Guidelines" means those rules and policies established by Zenus (**see Schedule 3.1 and Schedule 4.1(a)**) to determine whether an Applicant's End User Application should be approved and an End User Sub-Account opened.

"**BIN**" has the meaning set forth in Section 3.1(d).

"**BSA**" means the federal Bank Secrecy Act (12 U.S.C. §§ 1951 et seq.), as amended by the USA Patriot Act or otherwise from time to time, and all regulations thereunder and any successor regulations.

"**Business Day**" means any day other than a Saturday, Sunday or legal holiday, on which Zenus is open to the public for carrying on business.

"**Card**" means a debit card or other debit device or number, which includes the record of debits and credits thereto, that is issued by Zenus as a product of Zenus in connection with the Program and under authority from a Network. Note: a future Program Schedule may expand the definition of "Card" to include credit cards issued by Zenus as a product of Zenus under authority from a Network.

"**Card Revenue**" means, with respect to any Program, all income resulting from each End User's use of a Card, including Interchange as well as fees as specified in the relevant End User Agreement.

"Card Vendor" is identified and performs the functions set out in Schedule 3.11.

"**Change in Control**" shall mean any transaction or series of transactions (as a result of a tender offer, merger, consolidation, reorganization, recapitalization, stock acquisition, or otherwise) that results in (i) any Person or "group" (within the meaning of Section 13(d)(3) of the Securities Exchange Act of 1934, as amended, and the rules and regulations promulgated thereunder) acquiring, directly or indirectly, a majority of the combined voting power of the outstanding securities of such Party (or its Controlling Parent (as defined below), if there is one) entitled to vote generally in the election of directors (or any equivalent governing body); provided, however, that any merger or consolidation of such Party with and into any of such Party's direct or indirect subsidiaries or parent companies or direct or indirect subsidiaries of such parent company, shall not constitute a "Change in Control" hereunder so long as the Controlling Parent prior to such merger or consolidation shall, after giving effect to such merger or consolidation, own and control, directly or indirectly and beneficially and of record, not less than a majority of the combined voting power of the outstanding securities of the surviving entity from such merger or consolidation entitled to vote generally in the election of directors (or any equivalent governing body), (ii) the sale, lease, license, exchange, conveyance, transfer, or other disposition of all or substantially all of the assets of such Party (or its Controlling Parent, if there is one), or (iii) the Controlling Parent (if there is one) (the "**Former Controlling Parent**") ceasing to own, directly or indirectly and beneficially and of record, a majority of the combined voting power of the outstanding securities of such Party entitled to vote generally in the election of directors (or any equivalent governing body) save where, following such cessation, such Party and the Former Controlling Parent have a common Controlling Parent. "**Controlling Parent**" means, with respect to such Party, the ultimate Person (if any) that owns and controls as of the date hereof, directly or indirectly and beneficially and of record, a majority of the combined voting power of the outstanding securities of such Party entitled to vote generally in the election of directors (or any equivalent governing body).

"**Claim**" means any and all third-party threats, actions, demands, investigations, proceedings, claims, counterclaims, defenses, or allegations (whether formal or informal, individual or in a representative capacity) made by or on behalf of any consumer; End User; Regulatory Authority; Network; any attorney general, district attorney or other law enforcement authority; or any other Person other than a Party. The term includes disputes based upon contract, tort, consumer rights, fraud and other intentional torts, constitution, statute, regulation, ordinance, common law and equity (including any claim for injunctive or declaratory relief) and includes disputes based on alleged violations of any Applicable Law.

"**Client**" has the meaning set forth in the Recitals.

"**Client Sub-Account**" a virtual sub-account within the FBO Account that Program Manager maintains for its End Users or issues to a Client, which consists of a sub-account established in each Client's name or Program Manager's name, as applicable, with its own account number extension.

"**Client Services Agreement**" has the meaning given in Section 3.1.

"**Complaint**" has the meaning given in Section 4.4(d).

"**Confidential Information**" has the meaning set forth in Section 13.1(b).

"Correspondent Account" Any account used to receive deposits, make payments, disbursements, or conduct other financial transactions on behalf of a Foreign Financial Institution.

"Covered Financial Institution" U.S. banks, broker-dealers, or other institutions defined under the applicable U.S. regulations.

"**Deposit Ledger**" means the ledger record of all Client Sub-Accounts and End User Sub-Accounts and other accounts associated with each Program, as applicable, and Transactions in accordance with the terms herein and Zenus' instructions. Deposit Ledger shall include all deposit information, including amounts deposited and any withdrawals, and the owner(s) of the deposits, including all indemnifying information required by Zenus.

"**Disclosing Party**" has the meaning set forth in Section 13.1(d).

"**Dispute**" has the meaning set forth in Section 19.13(a).

"**Due Diligence Materials**" has the meaning given in Section 5.6.

"**Effective Date**" has the meaning set forth in the Preamble.

"**EFTA**" means the Electronic Fund Transfer Act (15 U.S.C. §§ 1693, et seq.) and Regulation E thereunder (12 C.F.R. Part 1005), as each may be amended from time to time.

"**End User**" means a Person or Legal Entity to which Zenus has opened a bank account or issued a Card under the Program.

"**End User Agreement**" means the agreement between an End User and the applicable Party governing the terms and use of the End User Sub-Account and, if applicable, the associated Card, and it may include a separate cardholder agreement, in each case on the form required by Zenus.

"End User Application" means an application for an End User Sub-Accounts and, if applicable, a Card to be submitted by Applicants.

"**End User Complaint**" has the meaning given in Section 4.4(b).

"**End User Data**" means (i) all "Nonpublic Personal Information" (as defined in 12 C.F.R. § 1016.3(p))), "Identifying Information" (as defined in 12 C.F.R. § 1022.3(g)) and other personally identifying information with respect to End Users; (ii) transaction data generated or created in connection with Card processing and maintenance activities, End User Sub-Accounts and Card statements and End User service, telephone logs and records and other documents and information necessary for the processing and maintenance of End User Sub-Accounts and Cards; and (iii) demographic data concerning End Users and other aggregated, de-identified or other datasets derived from information in categories (i) or (ii) of this definition.

"**End User Sub-Account**" a virtual sub-account issued by Program Manager, which consists of a sub-account of a Client Sub-Account in each End User's name, with its own account number extension.

"**Existing Proprietary Rights**" has the meaning given in Section 10.2.

"**FBO Account**" an omnibus custodial account owned by Zenus, in which Zenus pools the funds held by Program Manager and Clients, for their benefit and the benefit of their End Users.

"**FFIEC**" means the Federal Financial Institution Examination Council.

"**FinCEN**" means the Financial Crimes Enforcement Network.

"**Force Majeure Event**" has the meaning set forth in Section 12.2(h).

"Foreign Bank" Any bank organized under foreign law and located outside the United States, including its branches, offices, or agencies, as per 31 CFR 1010.100(u).

"Foreign Financial Institution" Includes any Foreign Bank, as well as entities engaged in the business of accepting deposits, making payments, extending credit, dealing in securities, or otherwise conducting activities equivalent to banking or financial services under foreign law.

"**Former Controlling Parent**" has the meaning set forth in Section 12.2(d).

"**GLBA**" means, collectively, Title V – Privacy of the Gramm–Leach–Bliley Act, P.L. 106–102, the implementing regulations promulgated thereunder, and the standards for safeguarding customer information set forth in 12 C.F.R. Part 364 and 16 C.F.R. Part 314, all as they may be amended, supplemented, or interpreted in writing from time to time by any federal Regulatory Authority.

"**IDTP**" has the meaning given in Section 4.2.

"**Initial Term**" has the meaning set forth in Section 12.1.

"**Intellectual Property**" means all inventions, trade secrets, processes, business models, methods of doing business, know-how, works of authorship, copy, artwork, designs, software, code, and other material, and all patents, Marks, copyrights, trade secrets, moral rights, and other intellectual property and proprietary rights therein owned or otherwise controlled by a Party.

"**Interchange**" means the revenue received by Zenus from acquiring financial institutions for Transactions, as established by a Network, net of the expenses due to such acquiring financial institutions for return credits, chargebacks and the discount rate, if any, for ATM transactions.

"**Legal Documents**" has the meaning given in Section 4.4(c).

"**Losses**" means any and all actual losses, assessments, damages, indemnities, liabilities, obligations, deficiencies, adjustments, judgments, settlements, dispositions, awards, offsets, penalties, fines and interest, and reasonable attorneys', accountants' and experts' fees and expenses, including any such fees and expenses incurred in any investigations, proceedings, counterclaims, defenses or appeals that could reasonably result in incurring or avoiding any Losses.

"**Mark**" means the service marks, trademarks and copyrights and marketing designs of Program Manager (including third parties whose Marks Program Manager purports to have the right to use in connection with a Program) and its Affiliates, a Network, or Zenus, including the names and other distinctive marks or logos, that identify Program Manager and its Affiliates, a Network, or Zenus, respectively, and including third parties whose Marks a Party purports to have the right to use in connection with this Agreement.

"**Marketing Campaigns**" means all marketing methods intended to generate requests for End Users or Cards pursuant to a Program by targeting a population using specific advertising media, such as Internet marketing, blogging, tweeting, e-mailing, texting, direct mail marketing, telemarketing, radio or television commercial airtime, print advertising, billboard advertising, or other methods of selling goods or services or acquiring sales leads.

"**Marketing Materials**" shall mean all media of any kind or nature, including email solicitation messages, published advertising (such as newspaper and magazine advertisements), Internet media, Card art, Card carriers, Card displays, social media posts, blogs, tweets, texts, banner ads, RSS feeds, telemarketing scripts, television or radio advertisements, brochures, postcards, posters, direct mailings, signage, frequently asked questions, interview or public speaking scripts and talking points, sales materials, and press releases intended for public dissemination or to promote, advertise or market a Program.

"**Material Service Provider**" means a Third-Party Service Provider that provides services that (i) involve access, storage, transmission or processing of End User Data, (ii) involve significant Program functions or other activities that could cause Zenus to face significant risk if the Material Service Provider fails to meet expectations, (iii) require significant Zenus investment in resources to implement the third-party relationship and manage the risk, or (iv) could have a material impact on Zenus' operations if Zenus has to find an alternate third party or if the outsourced activity has to be brought in-house. For the avoidance of doubt, each Client and the Subservicer is a Material Service Provider.

"**MasterCard**" means, if applicable, MasterCard International Incorporated and its successors and assigns.

"**Material Adverse Change**" means an event, change, or occurrence that individually or together with any other event, change, or occurrence, has a material adverse impact on (i) the financial position, business, or results of operations of Program Manager or Zenus, taken as a whole, or (ii) the ability of Program Manager or Zenus to perform its obligations under this Agreement.

"**Minimum Balance**" means $50,000

"**NACHA**" means the National Automated Clearing House Association and its successors and assigns.

"**Net Card Revenue**" means Card Revenue less Pass-Through Costs.

"**Network**" means Visa, MasterCard (if applicable) or any other card association or network utilized for the Settlement of Transactions within the scope of this Agreement.

"**Network Rules**" means the bylaws, operating rules and regulations of any applicable Network.

"**OFAC**" means the United States Department of Treasury's Office of Foreign Assets Control.

"**Party**" or "**Parties**" means, as applicable, Program Manager or Zenus.

"**PCI-DSS**" means the Payment Card Industry Data Security Standards established and implemented by the various payment card associations, as the same may be modified from time to time.

"**Person**" means any legal person, including any individual, corporation, limited liability company, partnership, joint venture, association, joint-stock company, trust, unincorporated organization, governmental entity or other entity of any nature.

"**Privacy Notices**" means all privacy policy disclosure statements required by Applicable Law, including GLBA, in connection with the use of any Client and End User Data by Zenus or Program Manager, any of Zenus' or Program Manager's Affiliates or any third party engaged by Program Manager or Zenus.

"Program" means one or more programs under which Zenus and Program Manager will offer Services to Clients, each as more fully described in a Program Schedule, the form of which is set out as Exhibit A.

"**Program Fraud**" means all losses due to fraud in connection with any Program, including deposit fraud and Card fraud.

"Program Launch" means the date on which Zenus first authorizes a Program, as described in Program Schedule and subject to a Client Services Agreement, to launch.

"**Program Materials**" means all written and electronic materials relating to each Program, including Marketing Materials, Marketing Campaigns, training materials, Program-related policies and procedures, End User Agreements, End User service letters, any webpages established by the Program Manager in connection with the Programs, any information, notices or disclosures relating to the FBO Account, Client Sub-Accounts, End User Sub-Accounts, and, if applicable, Cards provided to End Users, including Privacy Notices, error-resolution notices, change-in-terms notices, and disclosures required by the EFTA, and documents and any amendments or updates thereto.

"Program Records" has the meaning given in Section 3.7(a).

"**Program Manager**" has the meaning set forth in the Recitals.

"**Program Manager Contractor**" has the meaning set forth in Section 18.1(d).

"**Program Manager Indemnified Parties**" has the meaning set forth in Section 18.3.

"**Program Manager Relationship Manager**" has the meaning set forth in Section 3.12.

"**Program Manager Services**" are those services of Program Manager to be performed hereunder, as set forth in Article 3, including establishing one more Programs, and performing the marketing, promotion, and registration of Clients or End Users by Program Manager or Clients, pursuant to this Agreement.

"**Program Proposal**" has the meaning given in Section 3.1(b).

"**Program Schedule"** means a written addendum to this Agreement, substantially in the form attached hereto as Exhibit A and executed by each Party, that sets forth the Parties' respective duties and obligations with respect to a particular Program and a particular Client.

"**Receiving Party**" has the meaning set forth in Section 13.1(d).

"**Regulatory Authority**" means (i) any federal, state or local governmental or regulatory authority, agency, court, tribunal, commission or other authority having jurisdiction over Zenus, Program Manager, or the Program, including, without limitation, the Commissioner; and (ii) if the Program includes Cards, the applicable Network.

"**Regulatory Communication**" means all material communications, including oral communications, to or from any Regulatory Authority or any official thereof, written correspondence, or reports of examination, excluding any routine communication from a state or federal department of labor or similar agency, regarding this Agreement, or any aspect of the Program.

"**Renewal Term**" has the meaning set forth in Section 12.1.

"**SEC**" means the U.S. Securities and Exchange Commission.

"**Security Breach**" has the meaning set forth in Section 15.4.

"**Security Contact**" has the meaning set forth in Section 15.3.

"**Security Guidelines**" means the Interagency Guidelines Establishing Standards for Safeguarding Customer Information, the FFIEC Information Technology Examination Handbook, PCI-DSS, Section 501 of GLBA and any other guidance or directives issued by a Regulatory Authority or Network applicable to the security of End User Data, as each may be amended from time to time during the Term and any Wind-Down Period.

"**Security Program**" has the meaning set forth in Section 15.1.

"**Services**" means the Program Manager Services and Zenus Services.

"**Settle**" and "**Settlement**" mean the movement of funds among Zenus, other financial institutions and the Networks to settle Transactions on Cards.

"State" means any United States state, the District of Columbia and any United States overseas territory or possession.

"**Subservicer**" means, if applicable, the Third-Party Service Provider that performs the duties stated in Schedule 3.11.

"Successor PSP" has the meaning set forth in Section 12.4(a).

"SWIFT" means Society for Worldwide Interbank Financial Telecommunication.

"**Term**" means the Initial Term any Renewal Terms, collectively.

"**Third-Party Service Provider**" means a third party that provides services on a Party's behalf hereunder together with such third party's agents, subcontractors, successors, and assigns and, for avoidance of doubt, includes Material Service Providers.

"**Transaction**" means using the FBO Account, a Client User Sub-Account, or End User Sub-Account to engage in a payment or withdrawal or other financial transaction or using a Card to engage in a financial transaction, as applicable.

"**Trailing Average**" means as of each day the amount (measured in dollars) of all Transactions processed with or through FBO Account and the amount (measured) of all Settlements in the aggregate (but without duplication) for the Trailing Period, all as agreed by the Parties.

"**Trailing Period**" means with respect to each day of determination of the Trailing Average, the five (5) day period immediately preceding each such date of determination; provided, however, that the five (5) day period may be increased in accordance with Section 3.13(a).

"**Visa**" means Visa International, Inc. and its successors and assigns.

"**Wind-Down Period**" means the period from the date of termination or expiration of the Agreement through the date that the Parties have completed the Wind-Down Plan for the Program(s) and, for purposes of any representations, warranties, covenants, or relevant obligations of either Party, shall be considered part of the Term.

"**Zenus Contractor**" has the meaning given in Section 18.3.

"**Zenus Indemnified Parties**" has the meaning given in Section 18.1.

"**Zenus Marks**" means the Marks of Zenus.

"**Zenus Services**" has the meaning given in Section 2.1.

ARTICLE 2:
ZENUS' PROGRAM SERVICES AND NATURE OF PROGRAM

2.1 Account Opening and Card Issuance and Settlement. Zenus, subject to the provisions of this Agreement, the applicable Client Services Agreement, and satisfaction of the requirements set out herein, shall: (a) open and manage the FBO Account; and (b) if Zenus has authorized the provision of Cards under the Program and Program Manager has agreed to avail itself of such offer, provide End Users with Cards associated with the FBO Account; and (c) Settle Transactions (collectively, the "**Zenus Services**").

2.2 General Description. Program Manager maintains the Platform which will provide functions to facilitate Clients' and End Users' access to deposit accounts and Cards offered by Zenus. Program Manager will provide sub-ledger recording services and processing of means of payments, including Transactions with the Cards issued under the Program (if applicable), Program Manager Services, and all other services that are agreed by the Parties to maintain and offer each Program. Zenus will establish and maintain an FBO Account in connection with the Programs in an institution previously approved by the Program Manager. Zenus will provide Program Manager read-only access to the FBO Account to enable Program Manager to provide the Program Manager Services to Clients and End Users under the Agreement. Program Manager deposits and Client deposits in respect of all the Programs will be held in the FBO Account. Zenus will not commingle other funds in the FBO Account. Zenus controls the flow of funds into and out of the FBO Account. With respect to each Program and Client, Program Manager will issue and maintain Client Sub-Accounts. Program Manager shall maintain a ledger accounting for the funds held in each Client Sub-Account for Zenus and reconcile transactions for each Client Sub-Account for Zenus. End User deposits in respect of each Program shall be held within the FBO Account. Program Manager shall maintain a ledger accounting for the funds held in each End User Sub-Account for Zenus and reconcile transactions for each End User Sub-Account for Zenus. In the form and manner approved by the Parties, Program Manager will provide periodic statements to Clients at the end of each statement period for the applicable End User Sub-Accounts. Program Manager shall deliver, or ensure Clients deliver, such periodic statements to the applicable End Users. Without limiting the generality of this Agreement, the Parties will look to include one or more of the features set forth in Exhibit B in respect of the Programs.

2.3 Control of Program. Each of Zenus and Program Manager hereby acknowledge and agree that (a) the Parties may establish Programs pursuant to this Agreement; (b) The Parties shall discuss in good faith all policies, activities, and decisions with respect to each Program and endeavor efforts to manage a continued oversight over the Programs; (c) The Parties may from time to time modify a Program or any aspect thereof (including any locations from which Zenus will accept deposits or to which Zenus will offer Zenus Services), and in such event Program Manager shall, and shall cause Client to, implement such changes as promptly as practicable and, if applicable, within the time period required by Applicable Law or any Regulatory Authority; (d) if Cards are offered under the Program, as set forth in the applicable Client Services Agreement, the Cards offered pursuant to this Agreement are products of Zenus; and (e) Program Manager shall serve as Zenus' "Program Manager" for each Program, to which Zenus has delegated specific responsibilities, as further described herein.

2.4 Authority of Program Manager. Zenus hereby engages Program Manager as Zenus' administrator and service provider for the purpose of providing the Program Manager Services described herein and the Services with respect to each Program.

2.5 Card Revenue. All Card Revenue shall be deposited by Networks or other third parties directly into an account owned solely by Zenus and transferred to the Program Manager for processing and distribution among the parties.

ARTICLE 3:
PROGRAM MANAGER'S PROGRAM SERVICES

3.1 Generally.

a. General Program Manager Obligations. Except as otherwise set forth herein, Program Manager shall assist in establishing one or more Programs and develop, market, and support the Programs on behalf of Zenus as set forth herein. Without limiting the generality of the foregoing, Program Manager shall perform all services that are necessary or appropriate to support each Program in accordance with the terms of this Agreement and Applicable Law, including those services described in Schedule 3.1 and otherwise described in this Agreement (collectively, the "**Program Manager Services**"). During the Term, and subject to the terms and conditions of this Agreement and Applicable Law, Program Manager shall not offer products or services to End Users on behalf of Zenus that are not documented in a Program Schedule or previously approved by Zenus in writing.

b. New Programs. To establish a new Program after the Effective Date, Program Manager will submit a business case substantially in the form required by Zenus ("**Program Proposal**") to Zenus for its approval; such Program Proposal will describe, among other things, the Client and structure, operation and purpose of the Program, the proposed fees for the Program, the types of End Users that will participate in the Program, the proposed Services to be offered in connection with the Program, the end date of the Program (if applicable), other details sufficient to permit Zenus to evaluate whether the Program Proposal (including proposed Program) complies with Applicable Law, Zenus policies, and the terms of this Agreement, and any other information or documentation requested by Zenus. Program Manager shall ensure that each Program Proposal is consistent and complies with Applicable Law, Zenus policies, and the terms of this Agreement. Following Zenus' determination, in its sole discretion that the Program Proposal satisfies concerns raised by its review, Zenus may approve the Program Proposal or the Parties can adjust it to amend it. Approval of any Program Proposal shall be evidenced by the execution of a corresponding Program Schedule. The Parties (as applicable) shall be responsible for ensuring that each Program, Program Schedule, the servicing, approval, and management of each Program and any related Services (including Zenus Services) complies with Applicable Law and the terms of this Agreement. Each time a Program Proposal is submitted for approval to Zenus as contemplated by this Agreement, Program Manager represents and warrants that there have been no material adverse changes in the information provided to Zenus as part of Zenus' underwriting and approval of Program Manager or in its financial condition or management. Client Services Agreement. No Program, which involves a Client, shall be effective until Program Manager and Client execute a services agreement ("**Client Services Agreement**"). The Client Services Agreement will outline the Services to be provided to each Client and each such Client's responsibilities and obligations in respect of each Program.

c. Debit Card Issuing Agreement. In the event that Program Manager elects to include Cards in any Program (in Program Manager's sole discretion and with the approval of Zenus), the Parties shall use good faith efforts to enter into a Debit Card Issuing Agreement, which shall be subject to the approval of Zenus. Pursuant to the Debit Card Issuing Agreement (i) Program Manager will provide, manage, and service Cards issued by Zenus through Clients and the related Client Services Agreement and to Customers, and (ii) Zenus shall in good faith cause the Visa Network to make dedicated bank identification numbers ("**BIN**") available in respect of this Agreement and the Programs.

3.2 Program Manager Licensing and Registration Requirements. Program Manager shall maintain all licenses, registrations, permits, and approvals necessary to perform its obligations under this Agreement in compliance with Applicable Law, and Program Manager shall ensure each Client maintains all licenses, registrations, permits, and approvals necessary to perform its obligations under the applicable Client Services Agreement and in compliance with Applicable Law.

3.3 Liability for Fraud. Program Manager agrees that it shall be responsible for and liable to Zenus for all expenses associated with, and any Losses attributable to, Program Fraud, whenever the reason of the Program Fraud occurs in connection with action, omission or responsibility of the Program Manager. Program Manager may require Clients to reimburse Program Manager for any such Losses, but such Client requirement shall not limit or affect Program Manager's responsibility to Zenus for such Losses or the timing of reimbursement of any such Losses.

3.4 Reserved

3.5 Program Manager Employees. Program Manager shall be responsible for the conduct and active monitoring of its employees, sales representatives, sales offices, and agents with respect to relevant aspects of Program Manager's performance of its obligations under this Agreement and the Program, including their respective compliance with this Agreement and Applicable Law. Program Manager shall also be responsible for the active monitoring of the performance of each Client under the Client Services Agreement.

a. Background Checks and Employee Responsibility. Without limiting the foregoing, Program Manager shall conduct an initial background check on each of its employees engaged in providing the Program Manager Services on Program Manager's behalf. Except as otherwise expressly provided in this Agreement, Program Manager shall be liable for any act or omission by such employees. Program Manager shall as promptly as practicable correct any non-compliant activity or other activity that could cause harm to Zenus' regulatory standing. In the event an employee or potential employee's background check does not meet the standards required in the market, Program Manager shall prohibit such employee for providing Program Manager Services or accessing any data relating to the Program.

b. Program Manager Training. Program Manager shall provide appropriate training for its officers, employees, agents, and representatives with respect to their duties related to the Program or arising under Applicable Law, which shall include, at minimum, new hire training and annual training for all relevant employees.

3.6 Program Manager Programs Audits and Examination Cooperation.

a. Program Manager Audits. Program Manager shall perform or cause to be performed at its own expense the audits set out in Schedule 3.6(a).

b. Reserved.

c. Financial and Due Diligence Reviews. Unless agreed otherwise by the Parties, Program Manager shall deliver to Zenus (i) within one hundred eighty (180) days after each fiscal year end for Program Manager, audited financial statements of Program Manager and its consolidated subsidiaries, including a consolidated balance sheet and consolidated statement of income and consolidated statement of cash flows and all notes and schedules thereto as of the end of such period, certified by the independent public accountants of Program Manager

3.7 Recordkeeping and Reporting.

a. Recordkeeping. The Parties (as applicable) will keep, or cause to be kept, current and accurate records relating to each Program, including: (i) the identity of each End User, and the information collected and steps taken to verify such identity, if applicable to the Program; (ii) all balance, Transaction, and related information associated with the FBO Account, Client Sub-Accounts, End User Sub-Accounts and Customer's Cards; (iii) all servicing e-mails, messages, and other communications with Applicants and End Users; and (v) other information as may be required by Applicable Law ("**Program Records**"). Program Manager shall regularly within the term agreed or mandatory review and reconcile the Deposit Ledger and the FBO Account and all Client Sub-Accounts and End User Sub-Accounts, as well as all Transactions and Settlements related to each Zenus Service, against (i) the records and information provided by Zenus and maintained by Clients, (ii) the Deposit Ledger, and (iii) authorizations provided by End Users. As part of the daily reconciliation, Program Manager shall also ensure it maintains sufficient funds in the FBO Account to fund every Transaction and Settlement and that each End User has sufficient available funds in its End User Sub-Account to fund every

Transaction and Settlement processed by Zenus for the corresponding day in connection with such End User and shall ensure that each Transaction and Settlement submitted to or processed by Zenus for such day has a corresponding authorization from the appropriate End User. Program Manager shall ensure its reconciliation is accurate and complete.

b. Access to Program Records. As long as not infringing confidentiality of any third party or Clients and/or not breaching any disposition of a the agreements executed among Program Manager and Third Party Service Providers, Program Manager shall ensure that Zenus is provided with (x) read-only access to all Program Records maintained by Program Manager and each Client and (y) access to all Program Records maintained by any Material Service Provider on a pass-through basis consistent with the service levels and other terms and conditions available to Program Manager under Program Manager's contractual agreements with such providers. Program Manager shall maintain software services necessary to (i) accurately and timely maintain and deliver the Deposit Ledger; (ii) maintain Records for transaction authorizations, including any customer authorizations required to initiate transactions related to, or otherwise access or use, Zenus Services, as required by Applicable Law, this Agreement, and Zenus policies since such policies do not demand more than Applicable Law and/or Security Guidelines; (iii) balance, reconcile and manage transactions related to Zenus Services and the deposits or funds held by Zenus or Settlements of transactions in connection with the Program(s); (iv) accurately and timely maintain Records; and (v) accurately and timely maintain, produce and recreate transaction logs and any reports required by Zenus to monitor Program(s).

c. Ownership of Program Records. All Program Records generated by Program Manager, Clients, and Third-Party Service Providers related to the performance of Program Manager's obligations under this Agreement shall be the property of Program Manager.

d. Test Environment. Program Manager must maintain a test environment of Program Manager's End User Application funnel and End User account portal, if applicable.

e. Reporting. Program Manager shall provide Zenus with those reports set out in Schedule 3.7(e). Program Manager further shall provide, or shall cause its Subservicers to provide, to Zenus a report that contains such other Program information as may be requested by Zenus from time to time.

f. Network Membership/Registration. If Cards are offered in connection with the Program, which shall be evidenced in a Program Schedule and the related Client Services Agreement, and to the extent required by a Network, Program Manager shall, and shall cause each Client to, execute and provide Zenus with all documentation as may be necessary for such Network approvals and registrations and any renewals thereof. Approval of Program Manager or any Client by any Network is a condition precedent to the commencement of offering Cards under any Program or any Client Services Agreement, and Program Manager shall, and if applicable shall cause each Client to, maintain its registration with the applicable Network(s) and fully comply with the terms of any documents and agreements executed therewith. Program Manager shall and shall cause each Client (as applicable) to, deliver to Zenus, within twenty (20) Business Days of receipt, a copy of all notices or correspondence received from the Networks relating to the Programs marketed or managed by Program Manager on behalf of Zenus, except as prohibited by Applicable Law. If Cards are offered in connection with the Program, Program Manager shall, and shall cause each Client to, take all actions as may be required from time to time of Program Manager or any Client by any Network in connection with any Program.

3.8 Cards and Program Materials.

a. Card Design and Inventory. Program Manager shall, to the extent applicable under the relevant Program, as set forth in the applicable Client Services Agreement and to the extent permitted, be responsible for developing and submitting to Zenus for review one or more proposed designs of each Card issued pursuant to a Program in compliance with Applicable Law, regulations, Visa guidelines and requirements. Each Card shall (i) identify Zenus as the issuer of the Card, but not in a manner than is more conspicuous than Program

Manager's Card branding (or if applicable and agreed to by Zenus, Client's branding), such as by limiting placement of Zenus Marks to a corner of the Card and in a font or logo size that is smaller than that used for Program Manager's Marks, and (ii) include such other disclosures as may be required to comply with Applicable Law. Program Manager shall be responsible for producing, ordering, embossing, encoding, safeguarding, and otherwise preparing for use an inventory of such Cards, including the costs and expenses for the foregoing.

b. End User Agreements and Program Materials. The terms and conditions applicable to each End User Sub-Account and Card offered pursuant to a Program shall be set forth in an End User Agreement between Zenus and each End User, which shall reflect the fees applicable to the Program as set forth in the relevant Program Schedule or as otherwise established by Zenus and Program Manager pursuant to this Agreement.

i. If and to the extent required by Zenus and if Zenus does not provide Program Manager with the form of End User Applications or End User Agreements, Program Manager shall be responsible for developing all End User Applications and End User Agreements and shall present each such form of End User Application and End User Agreement to Zenus for Zenus' written approval prior to use, which forms shall not feature Zenus Marks more conspicuously than Program Manager Marks unless required by Applicable Law. No change may be made to the approved form of End User Application or End User Agreement without Zenus' prior written approval. Program Manager shall not submit an End User Application for Zenus approval that does not comply with the Approval Guidelines; provided that Program Manager may submit a non-compliant End User Application if it identifies the elements of non-compliance and the rationale for a waiver of such non-compliance. All non- compliant End User Applications must be approved by Zenus in writing prior to approval of that End User to engage in any Transaction.

ii. Except as otherwise determined by Applicable Law, Program Manager shall, or shall cause Clients to, develop all other Program Materials for the Programs at Program Manager's or Client's sole cost and expense. Program Manager shall be responsible for ensuring that all Program Materials comply with Applicable Law, including, for the avoidance of doubt, any Program Materials developed or provided by Zenus. The Parties acknowledge and agree that all End User Agreements, Card designs, and other Program Materials shall be subject to Zenus' prior review and written approval and may not be used without such approval, except in case of Zenus' silence greater than three (3) Business Days. It is agreed that Zenus will only be able to deny Program Material when it does not in compliance with Applicable Law, regulations and Visa's guidelines and requirements.

iii. For the avoidance of doubt, Zenus shall (a) be the contracting party under all End User Agreements, and (b) enter into an End User Agreement with each End User, using such names or Marks as may be required by Zenus or Applicable Law consistent with this Section 3.8.

3.9 Delivery of Cards and End User Agreements. Except as otherwise determined by Zenus from time to time, Program Manager, at no cost to Zenus, shall be responsible for producing and distributing to End Users, as directed by Zenus, the following: (i) if the Program includes Cards, a Card carrier containing a Card, and in any event the End User Agreement and any other Program Materials requested by Program Manager, and (ii) any disclosures required by Applicable Law applicable to Program Manager's jurisdiction. If there is any requirement in accordance with Zenus' jurisdiction then Zenus shall cause Program Manager to communicate such to the End Users. If the End User consents, Program Manager may deliver the Program Materials, End User Agreement and other disclosures required by Applicable Law electronically consistent with Applicable Law. Program Manager shall also maintain (i) appropriate logs of End User consents and agreements with e-disclosure provisions contemplated hereunder and (ii) sufficient metadata to authenticate the End User and provide proof of delivery thereto.

3.10 End User Customer Service.

a. If and to the extent required by Zenus, Program Manager shall be responsible, at no cost to Zenus (except as otherwise expressly agreed by Zenus), for (i) establishing and maintaining an internet website and mobile application that performs customer service functions required by Applicable Law or otherwise mutually agreed by the Parties; (ii) administering and maintaining a toll free phone number, which number shall be printed on the Cards (if the Program includes Cards) and End User Agreements, for providing live agent customer service, which customer service shall be available at least 8 hours per day during applicable daytime hours, 5 workdays per week, unless otherwise agreed by the Parties; and (iii) providing End Users with access to account information regarding their End User Sub-Accounts and Cards as required by Applicable Law. If and to the extent required by Zenus, Program Manager shall maintain or cause to be maintained web access and access through an app that shall be available 24 hours per day, 7 days per week (excluding scheduled downtimes) for End Users who have a lost or stolen Card (if the Program includes Cards) or who have detected fraud on their account. Additionally, if and to the extent required by Zenus, Program Manager shall maintain or cause to be maintained a website or other electronic means to make available to End Users an electronic history of all Transactions relating to the applicable End User Sub-Accounts within at least the last twelve (12) months preceding the date of the End User's request or such other time period required by Applicable Law, and Program Manager shall further ensure that the End User Agreement is available on such website.

b. Program Manager shall ensure that its End User customer service activities are conducted by trained personnel using standard of care and service levels that are commercially reasonable consistent with industry best practices and the service levels in accordance with Applicable Law. Without limiting the generality of the foregoing, Program Manager shall also ensure that customer service representatives and Program Manager staff are knowledgeable regarding the fees and substantive terms of the Program.

c. As long as not infringing confidentiality of any third party, if and to the extent required by Zenus, Program Manager agrees to provide Zenus with reports and randomly selected recordings and/or transcripts of its End User customer service activities in such frequency and format as Zenus may reasonably request.

3.11 **<u>Third-Party Service Providers</u>**. Program Manager may retain Third-Party Service Providers in connection with the Program Manager Services, and therefore will be responsible for any action or omission of such Third-Party Service Provider that causes proven damages to Zenus. In case Zenus requires Program Manager to hire a specific Third-Party Service Provider, then Program Manager shall have no responsibility to any action or omission of such Third-Party Service Provider. In the event Program Manager retains one or more Material Service Providers in connection with the Program Manager Services, a Program, or this Agreement, such Material Service Providers shall comply with all applicable obligations of Program Manager hereunder. Program Manager shall implement a Vendor Management Program ("**VMP**") compliant with FFIEC standards and such other standards required by Zenus from time to time. Such VMP will include risk-rating of Third-Party Service Providers and special attention to high-risk and critical providers. Program Manager shall remain wholly and fully responsible to Zenus, Clients, and End Users for the acts or omissions of Third-Party Service Providers such that Zenus need not pursue Third Party Service Providers to seek recourse or remedy in the event of breach or other act giving rise to loss or harm. If and to the extent required by Zenus, Program Manager shall retain at its expense one or more Processors, Subservicers, and Card Vendors as Material Service Providers, each as approved by Zenus and to perform the functions required by Zenus from time to time, including the functions set out in <u>Schedule 3.11</u>.

3.12 **<u>Relationship Manager</u>**. Program Manager shall designate one or more of its employees as a "**Program Manager Relationship Manager**." The Program Manager Relationship Manager(s) shall serve as the point of contact for Program Manager with respect to the Programs and have day-to-day authority for undertaking to confirm that Program Manager fulfills its obligations hereunder in a timely manner, including the authority to commit Program Manager resources.

3.13 **<u>Account Transactions</u>**.

a. Without limiting the generality of Section 3.13(b), Program Manager shall at all times maintain in the FBO Account an amount equal to the greater of the Minimum Balance and the Trailing Average (the "**Required Balance**"). If on any day during the Term or any Wind-Down Plan, the balance of the FBO Account is less than the Required Balance, (x) Program Manager shall be required to fund in three (3) business days the FBO Account so that the amounts in the FBO Account meet or exceed the Required Balance, (y) After the period of three (3) days afore mentioned, Zenus may suspend any and all Transactions and Settlements until Zenus determines there are sufficient funds in the FBO Account to proceed. The Trailing Period or the Minimum Balance may be increased to the extent it is required to do so by any Regulatory Authority or if the amount in the FBO Account falls below the Required Balance two or more times in any three (3) month period. Zenus may otherwise increase the Trailing Period or the Minimum Balance with the consent of Program Manager.

b. On each Business Day during the Term, Program Manager shall ensure the FBO Account and each applicable Client Sub-Account and End User Sub-Account shall be credited for the following: (i) funds received by approved Program load formats; (ii) deposits to the FBO Account, Client Sub-Accounts and End User Sub-Account, as applicable; and (iii) any other credits due to End User. Program Manager will administer the Zenus Services and will be responsible for supervising and managing all daily funds flow processes, including ensuring all balances in the FBO Account and each Client Sub-Account and End User Sub-Account are accurate and fully funded by deposits placed with Zenus by End Users in connection with such accounts and all fund transfers requested by or on behalf of an End User or otherwise processed by Zenus pursuant to Program Manager's or any Client's instructions are fully funded by funds placed with Zenus. Program Manager shall be responsible for overseeing and managing funding of any Zenus Services (excluding any money transmission to be performed by Zenus) and ensuring End Users have deposited with Zenus funds sufficient to fulfill any transaction requested in connection with a Program. Program Manager shall be responsible and liable for any failure of the FBO Account directly caused by the Program Manager and each applicable Client Sub-Account and End User Sub-Account or any transaction requested in connection with a Program to be fully funded. In the event of any such failure, Program Manager shall reimburse Zenus in respect of any shortfall immediately following any written notice (which may be by email or other electronic means) for such amounts.

ARTICLE 4:
PROGRAM COMPLIANCE

4.1 **Compliance with Applicable Law**. Observing the requirements of Section 3.11, Program Manager acknowledges and agrees that it and its Third-Party Service Providers shall, and that Program Manager shall require each Client to, comply with Applicable Law in the performance of its actions in connection with this Agreement and each Client Services Agreement, including all applicable provisions of the BSA, the EFTA, and OFAC regulations. Program Manager understands that Zenus is subject to the regulatory and supervisory authority of Regulatory Authorities, including the Commissioner. Accordingly, Program Manager and each Program will be subject to the guidance, supervision, and oversight of those Regulatory Authorities, including the Commissioner.

a. Without limitation of the foregoing, Program Manager will perform the "**Program Manager Compliance Functions**" set forth in Schedule 4.1(a) together with such other functions that may be required by Zenus from time to time in connection any Program.

b. Program Manager further understands and agrees and shall use reasonable efforts to prohibit Cards from being used for Transactions covered by any merchant category code prohibited pursuant to Schedule 4.1(b), which schedule may be reviewed and amended as agreed by the Parties.

4.2 **Identity Theft Prevention Program**. Prior to the launch of the first Program, Program Manager shall provide Zenus with a copy of its identity theft prevention ("**IDTP**") policy and risk assessment designed to detect, prevent, and mitigate identity theft in connection with each Program for Zenus' review, revision, and approval and shall not be denied once is in accordance with Applicable Law and Regulatory Authority. Program

Manager shall maintain the IDTP policy at all times in accordance with Applicable Law. The IDTP policy, and any changes thereto, shall be submitted to Zenus for review and approval and may not be used unless so approved. Program Manager shall comply with the provisions of such IDTP policy in providing the Program Manager Services hereunder.

4.3 **Unlawful Gambling**. Program Manager shall adopt procedures to reasonably identify, and block transactions related to participation of an End User in illegal internet gambling as required by Applicable Law, including to the extent applicable, the Unlawful Gambling Enforcement Act of 2006 and Regulation GG. Those procedures, and any changes thereto, shall be submitted to Zenus for review and approval and may not be used unless so approved.

4.4 **Criticisms, Complaints and Legal Actions**.

a. Receipt of Regulatory and Network Inquiries. If a Party receives an inquiry regarding any matter whatever relating to (including omissions therefrom) the Program in a Regulatory Communication or oral or written communication received from a Network (any such event an "**Inquiry**"), such Party, as applicable, shall advise the other Party in writing of the Inquiry received within five (5) Business Days of receipt and share with the other Party relevant portions of any written documentation, or for oral communications, provide a detailed summary in writing, received from the relevant person informing such Party of the Inquiry, in each case to the extent not specifically prohibited by Applicable Law or any applicable Regulatory Authority or Network. Following receipt of such Inquiry, the Parties shall in good faith consult as to the appropriate action to be taken to address such Inquiry.

b. Complaints and Resolution. All complaints received by Program Manager or a Client from an End User relating to the Services (including any account or Card or its use) (each, a **"End User Complaint**") shall be promptly addressed and resolved by Program Manager in accordance with Applicable Law and Program Manager's complaint procedures.

c. Legal Actions and Requests. Program Manager shall promptly notify Zenus of any legal action brought by a third party that may have an adverse effect on any Program, any Client, or Zenus. Program Manager shall further provide Zenus with prompt notice and copies of all subpoenas, levies, garnishments, or other legal requests received Program Manager that relate to any Client, any Program, the Services, or ability of Program Manager to provide Program Manager Services in accordance with the terms of this Agreement, or that require the assistance of Zenus in order to provide an accurate response, whether from a Regulatory Authority, private attorney, court, or otherwise, relating to a Client, an End User, a Card, a Program or this Agreement ("**Legal Documents**"). Whenever the legal action may cause adverse effect on Zenus or Program, Zenus shall be responsible to prepare and file, in consultation with Program Manager, the necessary response to any Legal Documents. Program Manager shall provide any assistance reasonably requested by Zenus in order to timely meet the response deadline of any Legal Document and shall promptly provide to Zenus any requested information as set forth within such Legal Documents to the extent such information is within Program Manager's possession or control, and in no event later than three (3) Business Days prior to the response deadline of the Legal Document in order for Zenus to timely meet such response deadline. Notwithstanding the foregoing, nothing in this paragraph shall require Program Manager to act in a way that violates Applicable Law or waives otherwise applicable privilege (such as attorney-client privilege).

d. Records of Program Complaints and Responses; Reporting. Program Manager shall catalog and maintain copies of all Inquiries, Regulatory Communications, Legal Documents, End User Complaints or other "Complaints" as the term is defined in the Program Manager's Complaints and Error Resolution Policy (collectively, "**Complaints**"), and responses thereto, for the period required by Applicable Law. Program Manager further shall provide reports of Complaints as required by Zenus from time to time, including as set out in Schedule 4.4(d). Program Manager shall analyze, at least quarterly, all Complaints, including a trend analysis, and report such analysis to Program Manager's board of directors or a Program Manager committee at the next regularly scheduled meeting of the board or such committee.

4.5 **Program Modifications by Program Manager**. Program Manager may suggest changes to a Program, Program Materials, or a Program Schedule at any time, which Zenus may approve or deny in its sole discretion. Program Manager shall be responsible for all costs associated with any such changes suggested by Program Manager and approved by Zenus. Such changes shall be reviewed and, if so required, amended in accordance with the timeline in Section 3.1(b).

4.6 **Termination of Accounts**. Program Manager acknowledges that Client Sub-Accounts and End User Sub-Accounts and Cards shall be subject to suspension or cancellation at any time by Zenus by previous written notice with thirty (30) days in advance, in accordance with this Agreement, the End User Agreement, or as required by Applicable Law, or, on a case-by-case basis, where Zenus has strong evidences that an End User or Client is using the Client Sub-Account, End User Sub-Account or Card (if applicable) for fraudulent or illegal purposes, or in a manner that is not in accordance with the End User Agreement. If Cards are included in the Program, upon receipt of such notice from Zenus or upon termination of a Client Sub-Account or End User Sub-Account under this Agreement for any reason, at its sole expense, Program Manager shall, and shall cause each related Client and End User to (i) immediately return all related Cards in its possession or under its control to Zenus, and cause any other party or agent of Program Manager, including any Third-Party Service Providers, to return all related Cards in their possession to Zenus, or (ii) provide written certification of inactivation of all such Cards by a third party approved by Zenus, all in accordance with the Network Rules pertaining to the shipping and destruction of Cards.

4.7 **Zenus and Program Manager Cooperation**. As a service provider of Zenus, Program Manager acknowledges and agrees that: (a) any Regulatory Authority with jurisdiction and supervisory authority over Zenus has and shall have the statutory authority to regulate, examine, request information from, and initiate an enforcement action against Program Manager or its Third-Party Service Providers, with respect to the activities performed by Program Manager pursuant to this Agreement; and (b) such Regulatory Authority may require the Parties to (and if so required Program Manager shall) modify the terms of this Agreement or Program at any time. Each Party agrees to cooperate with any examination, inquiry, audit, information request, site visit, or the like that may be required by any Regulatory Authority with audit examination or supervisory authority over Zenus or Program Manager or this Agreement, to the fullest extent requested or otherwise indicated by such Regulatory Authority; provided, however, the Parties each agree to be the primary and only correspondent with respect to its specific Regulatory Authority unless otherwise directed or requested by the Party's own Regulatory Authority. Zenus shall retain ultimate control over, but make commercially reasonable efforts consistent with this Agreement to share, communicate, and coordinate with Program Manager regarding (i) any End User communications to the extent directly relating to the Program received or provided directly by Zenus, and (ii) such other End User or Program data or other assistance Program Manager may reasonably need from Zenus that are directly related to the Program in order to meet its obligations hereunder.

ARTICLE 5:
REPRESENTATIONS AND WARRANTIES OF PROGRAM MANAGER

Program Manager hereby makes the following representations and warranties to Zenus during the Term (including any Wind-Down Period), each of which, unless explicitly provided for otherwise, shall be deemed to be restated and remade on each day on which Client Sub-Accounts or End User Sub-Accounts are opened, Cards are issued, any Transaction records (or modifications thereto) are transmitted, or any action is taken by Program Manager with respect to the Program:

5.1 **Organization and Qualification**. Program Manager is duly organized, validly existing and in good standing under the laws of its jurisdiction of formation. Program Manager is duly qualified and in good standing to do business in all jurisdictions where Program Manager conducts activities related to the Program (including the provision of any Program Manager Services), except where the failure to so qualify would not have a material adverse effect on the Program, Zenus, or Program Manager's or Zenus' ability to continue operation of the Programs.

5.2 Corporate Authority.

a. Corporate Power. Program Manager has all necessary organizational power and authority to enter into this Agreement and to perform all of the obligations to be performed by it under this Agreement.

b. Authorization. This Agreement has been duly authorized by all necessary corporate proceedings, has been duly executed and delivered by Program Manager and is a valid and legally binding agreement of Program Manager duly enforceable in accordance with its terms (except as such enforcement may be limited by Bankruptcy, insolvency, reorganization, moratorium, and other laws relating to or affecting creditors' rights generally and by general equity principles).

c. Approvals. No consent, approval, authorization, order, registration, or qualification of or with any Regulatory Authority having jurisdiction over Program Manager is required for, and the absence of which would materially adversely affect, the legal and valid execution and delivery of this Agreement, and the performance of the transactions contemplated by this Agreement.

d. No Conflicts. The execution and delivery of this Agreement by Program Manager hereunder and the compliance by Program Manager with all provisions of this Agreement shall not: (i) conflict with, result in the breach of, constitute a default under or accelerate, terminate, modify, or cancel, or require any notice or consent under any agreement, contract, lease, license, instrument, or other arrangement to which Program Manager is a party or by which it is bound or to which any of its assets is subject, except for such violations, conflicts, breaches, defaults, accelerations, terminations, or modifications that would not have a material adverse effect on its ability to fulfill its obligations under this Agreement; or (ii) violate the organizational documents of Program Manager.

5.3 Prohibited Proceedings. As of the Effective Date, and except as otherwise disclosed in writing by Program Manager to Zenus, neither Program Manager nor any Principal of Program Manager has been subject to the following:

a. felony criminal conviction;

b. administrative or enforcement proceedings commenced within the past three (3) years by the Securities and Exchange Commission, any state or non-United States securities regulatory authority, Federal Trade Commission, federal or state bank regulator, or any other Regulatory Authority to the extent that, if adversely determined, such proceeding would adversely affect the Program, Zenus, or Program Manager's ability to perform its obligations under this Agreement (including the provision of Program Manager Services); or

c. restraining order, decree, injunction, or judgment in any proceeding or lawsuit, alleging fraud or deceptive practice on the part of Program Manager or any Principal thereof. For purposes of this subparagraph, the word "**Principal**" shall include any Person directly or indirectly owning ten percent (10%) or more of Program Manager, any officer or director of Program Manager, or any Person actively participating in, or having influence over, the management or control of Program Manager's business.

5.4 Program Manager Marks. Program Manager has the legal right to use and to permit Zenus to use, to the extent set forth herein, Program Manager's Marks.

5.5 **Intellectual Property Rights**. In the event Program Manager provides any software or hardware to Zenus, Program Manager has the legal right to such software or hardware and the right to permit Zenus to use such software or hardware, and such use shall not violate any intellectual property rights of any third party.

5.6 **Due Diligence Materials**. Program Manager has the financial capacity to perform its obligations under this Agreement. Program Manager has delivered to Zenus complete and correct copies of its balance sheets and related statements of income and cash flow and such other items (the "**Due Diligence Materials**") that Zenus has requested from Program Manager in connection with its due diligence review of Program Manager. All Due Diligence Materials furnished to Zenus were accurate and complete in all material respects and complete insofar as completeness may be necessary to give Zenus knowledge of the subject matter. Program Manager's financial statements, subject to any limitation stated therein, which have been furnished to Zenus, do fairly present the financial condition of Program Manager, and have been prepared in accordance with (i) the books and records of Program Manager, (ii) generally accepted accounting principles as in effect in the United States at the time of preparation, and (iii) all pronouncements of the Financial Accounting Standards Board.

5.7 **Compliance with Law**. Program Manager agrees (i) that the Program will, at all times during the Term, comply with Applicable Law and cause each Program to comply with Applicable Law, and (ii) to perform its obligations hereunder in compliance with Applicable Law.

5.8 **Program Manager Data and Program Materials**. The Program Manager data, Program Materials, and Program-related data and materials provided to Zenus under Section 14.3(i) are complete and accurate, to the best of Program Manager's knowledge at the time the data or materials are provided to Zenus, and Program Manager has provided such data and materials in a commercially reasonable time.

5.9 **Third-Party Service Providers**. Observing responsibilities of Section 3.11, all of Program Manager's Third-Party Service Providers have the full power and authority to perform any and all acts necessary to perform the obligations each such third party is undertaking, including, but not limited to, the possession and maintenance of all required licenses, permits, registrations, and authorizations.

ARTICLE 6:
COVENANTS OF PROGRAM MANAGER

Program Manager hereby covenants and agrees with Zenus as follows:

6.1 **Notices of Changes**. Unless such notice is expressly prohibited by Applicable Law or the actions or requirements of a Regulatory Authority, Program Manager shall notify Zenus as reasonably possible of any: (a) change in the name or form of business organization of Program Manager or change in the location of its chief executive office or the location of the office where its records concerning the Programs are kept; or (b) Change in Control of Program Manager. Except as such is limited by Applicable Law or the actions or requirements of a Regulatory Authority, Program Manager shall notify Zenus as soon as reasonably possible of any Material Adverse Change. Program Manager shall furnish such additional information with respect to any of the foregoing as Zenus may request from time to time.

6.2 **Notice of Proceedings**. Program Manager shall promptly notify Zenus of any material action, suit, litigation, proceeding, facts and circumstances, and of all tax deficiencies and other proceedings before Regulatory Authorities or officials that (i) relate to any Program or this Agreement, (ii) might give rise to any indemnification obligation pursuant to Article 18, or (iii) may adversely affect Program Manager's ability to perform its obligations under this Agreement or any Client's ability to perform its obligations under the applicable Client Services Agreement.

6.3 **Program Manager Operations**. Program Manager shall do or cause to be done all things necessary to preserve and keep in full force and effect its corporate existence and required licenses, and to comply with all requirements of this Agreement.

6.4 **True and Correct Information**. Program Manager covenants that all information furnished by Program Manager to Zenus for purposes of or in connection with this Agreement shall be, as of the date provided, true and correct in all material respects and does not omit any material fact necessary to make the information so furnished not misleading. Except as disclosed to Zenus, to the Program Manager's best knowledge, there is no fact (including threatened or pending litigation) that is reasonably likely to materially and adversely affect the financial condition, business, property, or prospects of Program Manager.

6.5 **Ancillary Agreements**. Program Manager will comply with and perform its obligations under any Client Services Agreements, End User Agreements, and any ancillary agreement or agreements with any Third-Party Service Provider of Program Manager, including any Subservicer, that may be in effect now or in the future in connection with any Program offered pursuant hereto.

ARTICLE 7:
ZENUS OBLIGATIONS

7.1 **Network Membership/Registration**. If Cards are included in the Program, Zenus shall subject to the applicable Program Schedule (i) use commercially reasonable efforts to assist Program Manager with obtaining all required Network approvals as any Network may require for Program Manager to perform its obligations hereunder (provided that Program Manager has satisfied all Network requirements), (ii) timely pay all Settlement amounts, normal fees, dues, and assessments associated with Zenus' membership(s), and (iii) abide in all material respects with the Network Rules.

7.2 **General**. Without limiting Program Manager's obligations or liabilities hereunder, Zenus shall: (i) review, revise, and provide feedback on all Program materials, including compliance and risk related policies and procedures; (ii) remit all fees payable to Program Manager, as set forth in Schedule 11.1 or any Program Schedule; and (iii) establish and maintain an BSA/AML overview program as required under U.S. based Applicable Laws.

7.3 **Adjustments to Account Information**. Zenus shall provide notice by email or telephone (which shall be confirmed by email) to a representative designated by Program Manager, unless prevented due to the urgency of the situation or otherwise required by Applicable Law or a Regulatory Authority, prior to making any adjustments or modifications to FBO Account, Client Sub-Account or End User Sub-Account information. If advance notice is not feasible due to the foregoing reasons, Zenus shall provide notice of such adjustment or modification by e-mail to an e-mail address designated by Program Manager following any such adjustments or modifications. Such notice shall include (i) the date such adjustment or modification will be or was made, (ii) the reason for making such adjustment or modification, (iii) the name and contact information for the employee or representative of Zenus that will make or made such change or adjustment, and (iv) such other information as may be reasonably requested by Program Manager from time to time.

7.4 **Management of Funds in FBO Account**: Zenus shall provide Program Manager read-only access to the FBO Account to enable Program Manager to provide the Program Manager Services to Clients and End Users under the Agreement and shall not commingle funds from any third party in the FBO Account. Zenus controls the flow of funds into and out of the FBO Account, and shall only move funds from or to the FBO Account following direct instructions by the Program Manager, such instructions given through the proper channels agreed upon by the Parties.

ARTICLE 8:
REPRESENTATIONS AND WARRANTIES OF ZENUS

Zenus hereby makes the following representations and warranties to Program Manager during the Term (including any Wind-Down Period), each of which, unless explicitly provided for otherwise, shall be deemed to be restated and remade on each day on which Client Sub-Accounts or End User Sub-Accounts are opened, Cards are issued, any Transaction records (or modifications thereto) are transmitted, or any action is taken by Zenus with respect to the Program:

8.1 **<u>Organization and Qualification</u>**. Zenus is an IFE, duly organized, validly existing, and in good standing under the laws of Puerto Rico. Zenus is duly qualified and in good standing to do business in all jurisdictions where such qualification is necessary for it to carry out its obligations under this Agreement, except where the failure to so qualify would not have a material adverse effect on Zenus' business, or where the failure to so qualify would not have a material adverse effect on Program Manager's or Zenus' ability to continue operation of the Programs. Zenus is (i) a member in good standing with each Network necessary to the operation of the Programs if cards are offered under the Program, and (ii) is in good standing with each Regulatory Authority with jurisdiction over it.

8.2 **<u>Corporate Authority</u>**.

a. <u>Corporate Power</u>. Zenus has all necessary corporate power and authority to enter into this Agreement and to perform all the obligations to be performed by it under this Agreement.

b. <u>Authorization</u>. This Agreement has been duly authorized by all necessary proceedings, has been duly executed and delivered by Zenus and is a valid and legally binding agreement of Zenus duly enforceable in Puerto Rico in accordance with its terms (except as such enforcement may be limited by bankruptcy, insolvency, reorganization, moratorium, and other laws relating to or affecting creditors' rights generally and by general equity principles).

c. <u>Approvals</u>. No consent, approval, authorization, order, registration, or qualification of or with any court or Regulatory Authority or other governmental body having jurisdiction over Zenus is required for, and the absence of which would materially adversely affect, the legal and valid execution and delivery of this Agreement, and the performance of the transactions contemplated by this Agreement.

d. <u>No Conflicts</u>. The execution and delivery of this Agreement by Zenus hereunder and the compliance by Zenus with all provisions of this Agreement shall not: (i) conflict with, result in the breach of, constitute a default under, or accelerate, terminate, modify, or cancel or require any notice or consent under any agreement, contract, lease, license, instrument, or other arrangement to which Zenus is a party or by which it is bound or to which any of its assets is subject, except for such violations, conflicts, breaches, defaults, accelerations, terminations, or modifications that would not have a material adverse effect on its ability to fulfill its obligations under this Agreement; or (ii) violate the organizational documents of Zenus.

8.3 **<u>Compliance with Law</u>**. Without limiting the generality of this Agreement, including Program Manager's obligation to ensure that each Program and the Services comply with Applicable Law, Zenus agrees to perform its obligations hereunder in compliance with Applicable Law.

<u>8.4.</u> **<u>Litigation</u>**. As of the Effective Date, there is no pending, nor to the knowledge of Zenus, threatened, suit, action, arbitration, or other proceedings of a legal, administrative, or regulatory nature, or any governmental investigation, against Zenus or any of its Affiliates or any officer, director, or employee that has not been previously disclosed to Program Manager in writing and that would materially and adversely affect Zenus' financial condition or Zenus' ability to perform its obligations under this Agreement.

<u>8.5.</u> **<u>Prohibited Proceedings</u>**. As of the Effective Date, and except as otherwise disclosed in writing by Zenus to Program, neither Zenus nor any Principal of Zenus has been subject to the following:

<u>8.5.1.</u> felony criminal conviction;

<u>8.5.2.</u> administrative or enforcement proceedings commenced within the past three (3) years by the Securities and Exchange Commission, any state or non-United States securities regulatory authority, Federal Trade Commission, federal or state bank regulator, or any other Regulatory Authority to the extent that, if adversely determined, such proceeding would adversely affect the Program, Program Manager, or Zenus' financial condition or ability to perform its obligations under this Agreement; or

8.5.3. restraining order, decree, injunction, or judgment in any proceeding or lawsuit, alleging fraud or deceptive practice on the part of Zenus or any Principal thereof. For purposes of this subparagraph, the word "**Principal**" shall include any Person directly or indirectly owning ten percent (10%) or more of Zenus, any officer or director of Zenus, or any Person actively participating in, or having influence over, the management or control of Zenus' business.

ARTICLE 9:
COVENANTS OF ZENUS

Zenus hereby covenants and agrees with Program Manager as follows:

9.1 **Notice of Proceedings**. Unless such notice is prohibited by Applicable Law or the actions or requirements of a Regulatory Authority, Zenus shall promptly notify Program Manager of any action, suit, litigation, or proceedings that may adversely affect any Program, any Client, any Client Services Agreement, and End User, or any End User Agreement.

9.2 **Zenus Operations**. Zenus shall preserve and keep in full force and effect its status as an IFE existence to comply with all requirements of this Agreement.

9.3 **Ancillary Agreements**. If Cards are included in the Program, Zenus will comply with and perform its obligations under the applicable Program Schedule and any ancillary agreement or agreements with the Network to the extent relating to the Program.

ARTICLE 10:
INTELLECTUAL PROPERTY

10.1 **License of Intellectual Property**.

a. Program Manager Intellectual Property. Program Manager hereby grants to Zenus, without cost during the Term, a non-exclusive, non-assignable license to use (i) Program Manager's name and other Marks in the forms and formats approved by Program Manager to perform Zenus' obligations under this Agreement and (ii) such other Program Manager Intellectual Property as Program Manager approves Zenus to use in connection with the Program (and in the specific manner approved by Program Manager). Program Manager represents and warrants to Zenus that Program Manager has the power and authority to provide the authorization herein granted. It is expressly agreed that Zenus is not acquiring any right, title, or interest in the Intellectual Property of Program Manager (or any improvements or additions thereto arising from the Program, whether during or after the Term), all of which shall be the property of Program Manager. Zenus shall make no use of Program Manager's Intellectual Property without Program Manager's prior written consent, except as specifically authorized in this Section 10.

b. Zenus Marks. Zenus hereby grants to Program Manager, during the Term, a non-exclusive, non-assignable license to use Zenus' name and other Marks in the forms and formats approved by Zenus to perform Program Manager's obligations under this Agreement. Zenus represents and warrants to Program Manager that Zenus has the power and authority to provide the authorization herein granted. It is expressly agreed that Program Manager is not acquiring any right, title, or interest in the name or any Marks of Zenus, all of which shall be the property of Zenus. Program Manager shall make no use of Marks of Zenus without Zenus' prior written consent, except as specifically authorized in this Section 10.

c. Consent to Use Intellectual Property. Except as otherwise provided herein, neither of the Parties hereto shall use the name, Marks, or any other Intellectual Property of the other Party without that Party's prior written consent. Each Party shall submit to the other Party for prior approval any advertising or promotional materials referring to or describing the Program in which such Marks are to be used, which approval shall not unreasonably be withheld or delayed. Zenus hereby agrees to permit the use by Program Manager of Zenus Marks in Program Materials, subject to Program Manager's compliance with any guidelines or specifications supplied by Zenus and Zenus' approval of such Program Materials before use. No Program Materials shall feature Zenus Marks more conspicuously than Program Manager Marks unless required by Applicable Law or first approved in writing by both Parties.

d. Restrictions on Use of Intellectual Property. Program Manager and Zenus each own all right, title, and interest in and to their respective Intellectual Property rights and associated goodwill. A Party will comply with the guidelines and procedures established by the other Party with respect to its use of such Party's Intellectual Property and will otherwise cooperate and agree upon the details of such use. A Party will not modify or alter the other Party's Marks and will include an appropriate trademark notice (e.g., ®, SM or TM, as the case may be) with each use of any of such Marks. Neither Party will adopt brands, logos, trademarks, trade names, or other Marks that are the same as or confusingly similar to the Marks of the other Party. In no event and under no circumstances shall a Party use the other Party's Intellectual Property in any manner that is derogatory, negative, likely to confuse any Person as to source of goods or services, or otherwise injurious to the other Party, as determined by the other Party in its sole discretion. Following the termination or expiration of this Agreement, each Party will immediately cease all use of all Intellectual Property of the other Party, subject to the conditions of any Wind-Down Period. To the extent that use of any Intellectual Property cannot be immediately discontinued, the Party using such Intellectual Property will only continue such use to the extent and for such period of time as is minimally necessary under the circumstances and shall use commercially reasonable efforts discontinue all such use as soon as possible.

e. Network Marks. Program Manager shall ensure that all use of the Network Marks complies with the Network Rules. Program Manager shall not, and shall not permit any Client to, utilize any Network Marks without the review and approval of Zenus. Additionally, Program Manager shall from time to time modify, and shall cause any Client to modify, its use of any Network Marks to comply with Network Rules. To the extent any Network approvals are required to use the Network Marks in connection with a Program, Zenus shall use reasonable efforts to assist Program Manager in obtaining approval.

10.2 Existing Intellectual Property. Each Party shall keep and own its existing Intellectual Property as of the Effective Date and, except as set forth in Section 13.4, any and all Intellectual Property rights in subject matter created by it thereafter. Except as set forth expressly herein, neither the execution, delivery, nor performance of this Agreement shall be construed as creating, assigning, granting, conferring or otherwise transferring to either Party, or any other third party, any right, title, interest, or license of any nature in, to, or under a Party's Intellectual Property ("**Existing Proprietary Rights**"), including, but not limited to, patents, copyrights, Marks, and trade secrets, and each Party will retain full ownership of and title to all equipment, materials, hardware, software, and other items provided by such Party in connection with the Program.

10.3 New Intellectual Property; Reservation of Rights. Nothing in this Agreement constitutes a work for hire agreement, and nothing in this Agreement constitutes an agreement by a Party to assign or otherwise convey title to any extensions, improvements, or derivatives to any Existing Proprietary Rights or to any new Intellectual Property to the other Party.

ARTICLE 11:
COMPENSATION, FEES, AND EXPENSES

11.1 Compensation. Each Party shall be compensated as set forth on Schedule 11.1. Each Party's compensation relating to any Programs offered by Zenus pursuant to this Agreement shall be as mutually agreed in the applicable Program Schedule.

11.2 Expenses.

a. Zenus Fees and Expenses. In addition to any other expenses of Zenus specifically described in this Agreement and except as otherwise expressly set forth herein, Zenus shall be solely responsible for the following expenses:

i. Normal fees, dues, and assessments related to Zenus' own membership in any Network utilized by the Program, subject to Section 11.2(b)(ii) below;

ii. Zenus' operating costs unrelated to the Program and, unless and to the extent otherwise stated herein, Zenus' own internal costs and overhead generated from its review, assessment, and development of the Program, and from its supervision and oversight of Program Manager and the Program;

iii. all taxes and insurance obligations of Zenus arising under this Agreement related to the performance of its duties and obligations;

iv. all costs incurred by Zenus in arranging and completing wire transfer and ACH transfers under any Program;

v. reasonable out-of-pocket costs and expenses paid or incurred by Zenus in the performance of on-site reviews of Program Manager's or any Client's financial condition, operations and internal controls, including any such reviews of Program Manager's Third-Party Service Providers, in accordance with this Agreement; and

vi. legal fees incurred by Zenus in connection with its ongoing support and oversight of this Agreement or any Program (after execution of the Agreement).

b. Program Manager Fees and Expenses. In addition to any other expenses of Program Manager described in this Agreement and except as otherwise expressly set forth herein, Program Manager shall be solely responsible for the following expenses:

i. Program Manager's own costs and overhead generated in performing its obligations under this Agreement;

ii. all costs and fees associated with establishing dedicated BINs in respect of this Agreement and the Programs, including all Visa Network costs and fees relating thereof;

iii. Program Manager's advertising expenses associated with Program Manager Services, including establishing Programs and Clients and the marketing of Programs to potential End Users;

iv. all taxes and insurance obligations of Program Manager arising under this Agreement related to the performance of its duties and obligations;

v. any fees charged by a Network related to Program Manager's registration, as applicable, as a marketing agent or service provider of Zenus;

vi. all expenses associated with Program Manager's retention, oversight, and supervision of any Program or Client or of its Third-Party Service Providers, including a Subservicer, and all expenses associated with the Program Manager Services;

vii. licensing fees required to license intellectual property rights from a third party in connection with Program Manager's responsibilities to deliver the Program; and

viii. all costs and expenses associated with obtaining external audits, reviews, monitoring or testing for the Program as set forth in Schedule 3.6;

c. Agreement-Related Legal Fees. Each Party shall be responsible for own legal fees related to the negotiation and preparation of this Agreement.

11.3 Set-Off and Other Zenus Remedies. In the event of any failure by the Parties to perform any of their obligations hereunder or under any Program Schedule or any End User Services Agreement, the innocent Party shall have all rights and remedies available to it at law or in equity in addition to any rights and remedies provided herein.

11.4 Adjustments. Program Manager shall be responsible for verifying its monthly reports and records for various debits and credits made pursuant to this Agreement, and for promptly notifying Zenus of any perceived errors whether to Program Manager's benefit or to Zenus' benefit. Errors related to pass-through billing of Networks must be reported within the timeframe allowed by that Network for disputing of charges.

ARTICLE 12:
TERM AND TERMINATION OF AGREEMENT

12.1 Term and Termination of Agreement. The initial term of this Agreement shall be for a period of thirty six (36) calendar months commencing on the Effective Date (the "**Initial Term**"), and shall continue for successive one (1) year periods (each a "**Renewal Term**"), unless prior to the expiration of the Initial Term or any Renewal Term Zenus or Program Manager gives the other Party not less than ninety (90) days' written notice of its election not to renew this Agreement.

12.2 Termination of Agreement for Cause. Program Manager shall have the right to terminate this Agreement or any Program upon occurrence of one or more of the events described in subsections (a), (b), (e),(g) and (h) of this Section 12.2, and Zenus shall have the right to terminate the Agreement or any Program upon the occurrence of one or more of the events described in subsections (a)-(i) of this Section 12.2, in each case upon written notice to the other Party.

a. Material Breach. If the other Party shall fail to observe or perform, in any material respect, its obligations hereunder (so long as the failure is not due to the actions or failure to act of the terminating Party) and such failure continues for a period of (A) in the case of a failure involving the payment of any undisputed amount due hereunder, ten (10) Business Days after the non-performing Party receives written notice from the terminating Party specifying such failure, or (B) in the case of any other failure, thirty (30) days after the non-performing Party receives written notice from the terminating Party specifying such failure, provided, however, that the terminating Party shall have the right, in its sole discretion, to terminate this Agreement without giving effect to any cure period if a substantially similar material failure has occurred in the preceding one hundred and eighty (180) days and notice was given to the non-performing Party in writing that such failure was the type of failure that could trigger this clause. Notwithstanding the foregoing, if the breach involves a Settlement failure by Program Manager, then the cure period shall be five (5) Business Days.

b. Regulatory Changes. Upon any change to or effective date of any Applicable Law, or published change in the interpretation thereof by any Regulatory Authority, or any concern or requirement communicated by a Regulatory Authority to either Party relating directly to the Program or any Program

Materials that would have a material adverse effect upon: (i) the Program; or (ii) such Party's ability to perform its obligations hereunder; provided, however, that the Parties cannot find a legally workable solution to such a change in Applicable Law or Regulatory Authority interpretation that is acceptable to both Parties, as determined in each Party's sole discretion, within a reasonable amount of time.

c. Direction by Regulatory Authority. Upon direction or indication to Zenus from any Regulatory Authority or Network for such Zenus to cease or materially limit the exercise or performance of such Zenus' rights or obligations under this Agreement.

d. Reserved.

e. Financial Condition. If there shall have occurred a Material Adverse Change in the financial condition of Program Manager or Zenus.

f. Regulatory Termination. Upon a written notice with thirty (30) days ("**Grace Period**") "if Zenus proves that any activities of Program Manager or any aspect of any Program or this Agreement results in or could result in (i) a violation of Applicable Law or (ii) an unequivocable risk to the safety and soundness of Zenus as a whole, and, after consultation with the other Party, determines that modification of the Program to avoid such concern is not reasonably practicable. Rather than termination, Zenus may elect to suspend the Agreement in the event of the foregoing. Suspension shall result in the temporary cessation of submission of new End User Applications and opening of new End User Sub-Accounts until such time that the Parties are able to correct those aspects of the Program or Cards (if applicable) that amount to a violation of Applicable Law or a risk to the safety and soundness of Zenus.

g. Insolvency. If the other Party shall: (i) file, or consent by answer or otherwise to the filing against it, of a petition for relief, reorganization or arrangement, or any other petition in bankruptcy, for liquidation or to take advantage of any bankruptcy, insolvency, or similar law of any jurisdiction; (ii) consent to or become subject to the appointment of a custodian, receiver, trustee, or other officer with similar powers of itself or of any substantial part of its property; (iii) be adjudicated insolvent or be liquidated; (iv) take corporate action for the purpose of any of the foregoing; or (v) voluntarily or involuntarily commence proceeding for wind up or liquidation, if such proceeding or petition shall continue un-dismissed for sixty (60) days or an order or decree approving or ordering any of the foregoing shall continue unstayed and in effect for sixty (60) days.

h. Force Majeure Event. If the Parties are unable to carry out the whole or any part of their obligations under this Agreement by reason of a Force Majeure Event, then the performance of the obligations under this Agreement of the Parties as they are affected by such cause shall be excused during the continuance of the inability so caused, except that should such inability not be remedied within ninety (90) days after the date of such cause, the Parties may at any time after the expiration of such ninety (90) day period, during the continuance of such inability, terminate this Agreement on giving written notice. A "**Force Majeure Event**" as used in this Agreement shall mean an unanticipated event that is not reasonably within the control of the Parties or respective subcontractors (including acts of God, acts of governmental or monetary authorities, strikes, war, riot and any other causes of such nature), and that by exercise of reasonable due diligence, the Parties or respective subcontractors could not reasonably have been expected to avoid, overcome, or obtain, or cause to be obtained, a commercially reasonable substitute therefor.

i. FBO Account Maintenance. If Program Manager fails to comply with the requirements of Section 13 in two (2) or more instances in any three (3) month period and the same are not cured within twenty (10) Business Days after the occurrence of such failures.

12.3 Multiple Programs. In the event of multiple Programs operating pursuant to this Agreement, a notice of termination or suspension shall specify whether it applies to all Programs or only to a subset of Programs then in effect.

12.4 Wind-Down Period.

a. General Obligations. Upon the expiration or termination of this Agreement, (i) Zenus may elect to either transition one or more Programs to an alternative financial services provider (any such Person, a "**Successor PSP**") in accordance with Applicable Law and pursuant to Section 12.4(b) and (c) or (ii) one or more Programs may be wound down in accordance with Applicable Law and pursuant to Section 12.4(c). Each Party acknowledges that the main goals of the Wind-Down Period are (in order or priority) (i) to benefit the End Users by minimizing any possible burdens or confusion and (ii) to protect and enhance the names and reputations of the Parties, both of whom have invested their names and reputations in the Programs. Unless otherwise required by Applicable Law or any Regulatory Authority, upon the expiration or termination of this Agreement for any reason, the Parties agree to cooperate in good faith to wind-down or transition each Program in a commercially reasonable way as soon as reasonably possible to provide for a smooth and orderly transition or wind-down. Such cooperation will include continued provision of the services and payment of fees contemplated hereunder, in accordance with the terms of this Agreement.

b. Zenus Transition Election. In the event that Zenus elects to transition one or more Programs to a Successor PSP pursuant to Section 12.4(a), Program Manager's obligations shall include taking all other actions necessary to transfer support for the Program(s) to such Successor PSP in a manner that reasonably minimizes disruption and inconvenience to each Client and End User at Zenus expenses.

c. Wind-Down Plan. At least thirty (30) days prior to expiration of this Agreement or within thirty (30) days of receipt or delivery of a termination notice with respect to this Agreement or one or more Programs, Zenus shall provide to Program Manager in writing a proposed transition or wind-down plan, detailing (i) whether the affected Program(s) are to be wound down or transferred to a Successor PSP; and (ii) a proposed timeline, which shall designate a date as of which the affected Programs shall be wound down or have all relevant support functions transferred from Program Manager to a Successor PSP. Zenus and Program Manager shall meet promptly thereafter to review such proposed plan and to determine a mutually acceptable transition or wind-down plan (a "**Wind-Down Plan**"); provided, however, that if after commercially reasonable efforts Zenus and Program Manager fail to reach mutual agreement on the Wind-Down Plan within thirty (60) days, Zenus shall establish a Wind-Down Plan in its, in which case such Wind-Down Plan shall be deemed to be approved by Program Manager. The wind-down or transition of any affected Program(s) shall occur as soon as reasonably possible and in no event later than one (1) year after expiration or termination of this Agreement; provided, however, that such time period may extended by mutual written agreement of the Parties.

d. Wind-Down Period General Obligations. Unless the Wind-Down Plan provides otherwise, during the Wind-Down Period, the Parties shall continue to be bound by and comply with the terms of this Agreement and perform all of their obligations hereunder and shall remain liable for the representations and warranties, covenants and indemnification obligations under this Agreement; provided, however, that upon termination or expiration of the Agreement, Program Manager shall immediately cease marketing new and existing Programs. If Zenus determines in its sole discretion that Program Manager has failed to continue to provide customer service to the affected End Users during the Wind-Down Period in accordance with the terms of this Agreement, without prejudice to any other rights and remedies that may be available to Zenus, Program Manager shall take all necessary steps to re-direct End Users using such telephone numbers and websites to such toll-free telephone numbers and websites as designated by Zenus.

12.5 Press Releases. In no event shall the Parties make any public statement or End User communication regarding the termination of this Agreement, or any Cards (if applicable) or Program, without the express prior written approval of the other Party.

12.6 Return of Property. Following termination or expiration of this Agreement (including any Wind-Down Period), each Party shall (i) return all property belonging to the other Parties (including Confidential Information) that is in Party's possession or control at the time of termination and that it is not required by

Applicable Law to retain (but in that event only for such period that continued retention is required), and (ii) discontinue the use of and return to the other Party, or at the request of the other Party (and subject to the same limitations set out in (i)) destroy, all written and printed Program Materials bearing the other Party's name and logo, except as set forth in Section 13.4 hereof.

ARTICLE 13: CONFIDENTIALITY

13.1 General Confidentiality.

a. General. Commencing on the Effective Date, the Parties shall, and shall use all commercially reasonable efforts to cause their respective Affiliates, directors, officers, employees, representatives and other agents (including any Third-Party Service Providers) to hold in confidence, not utilize for any purpose not expressly contemplated hereby, and not disclose to any Person that is not a party to this Agreement, any Confidential Information obtained (whether before or after the Effective Date) from a Party to this Agreement or such Party's Affiliates, directors, officers, employees, representatives and other agents. Each of the Parties shall use all commercially reasonable efforts to cause their respective Affiliates, directors, officers, employees, representatives and other agents to adhere to the provisions of this Article 13.

b. Definition. For purposes of this Agreement, "**Confidential Information**" shall mean:

i. any information that is provided by or on behalf of a Party to another Party or its agents in connection with the Programs;

ii. any information concerning the business or properties of a Party, including the terms and conditions of this Agreement (as well as proposed terms and conditions of any amendments, renewals, or extensions of this Agreement) any proposed or agreed upon terms and conditions of any other Program agreement between and among the Parties or their Affiliates, sales volumes, test results, and results of marketing Programs, Program reports generated by a Party, trade secrets, business and financial information, source codes, business methods, procedures, know-how and other information (including intellectual property) of every kind that relates to the business of a Party; and

iii. any information about a Party or its Affiliates, or its respective businesses, Clients, End Users or employees, that is otherwise obtained by the another Party in connection with any Program, in each case including: (A) information concerning marketing plans, marketing philosophies, objectives and financial results; (B) information regarding business Networks, methods, processes, financing data, Programs and products; (C) information unrelated to the Programs obtained by a Party in connection with this Agreement, including by accessing or being present at the business location of the other Party; (D) proprietary technical information, including source codes; and (E) competitive advantages and disadvantages, End User Data, technological development, sales volume(s), merchandise mix, business relationships, and methods of transacting business, operational, and data processing capabilities, Networks software and hardware and the documentation thereof or other information of the business or affairs of each of the Parties and their respective Affiliates which that Party reasonably considers confidential or proprietary and any other information relating to the transactions contemplated by this Agreement, including any copies, excerpts, summaries, analyses, or notes of the foregoing. The Parties agree that the financial terms of this Agreement shall also be Confidential Information of both Parties and neither Party shall disclose such terms and conditions without consent from the other Party except as required by Applicable Law.

c. Exclusion. Notwithstanding the foregoing, Confidential Information shall not include any information: (i) obtained from information rightfully in the possession of the Receiving Party (below defined) and is not otherwise subject to a binding agreement as to confidentiality; (ii) that is or becomes generally available in the public domain other than as a result of an unauthorized disclosure or other act or omission by the other Party or its directors, officers, employees, or agents in violation of this Article 13; (iii) that is lawfully received on a non-confidential basis from a third party authorized to disclose such information without restriction and without breach of this Agreement; or (iv) that is independently developed by the Receiving Party without the use of any proprietary, non-public information provided by any other Party under this Agreement.

d. Maintenance of Confidentiality. The Party receiving Confidential Information ("**Receiving Party**") of the other Party ("**Disclosing Party**"), shall (i) keep all Confidential Information of the Disclosing Party secure and strictly confidential; (ii) treat all Confidential Information of the Disclosing Party with at least the same degree of care as it accords its own Confidential Information, but in no event less than a reasonable degree of care; (iii) use the Confidential Information solely as permitted under this Agreement; and (iv) implement and maintain commercially reasonable physical, electronic, administrative, and procedural security measures, including commercially reasonable authentication, access controls, virus protection, and intrusion detection practices and procedures.

e. Permitted Uses. Except as specifically set forth herein, the Receiving Party shall not use or disclose Confidential Information of the Disclosing Party except: (i) to perform its obligations or enforce its rights with respect to the Programs under the Agreement; (ii) as expressly permitted by this Agreement; (iii) with the prior written consent of the Disclosing Party; (iv) pursuant to a subpoena or court order; or (v) pursuant to a summons order or other judicial or governmental process issued by a Regulatory Authority, or in connection with any regulatory report, audit, inquiry or other request for information from such a Regulatory Authority, or as required by Applicable Law.

f. Limited Access. Each Receiving Party shall limit access to the Disclosing Party's Confidential Information to those employees, authorized agents, contractors, consultants and Third-Party Service Providers who (i) have a reasonable need to access such Confidential Information in connection with any Programs or the performance of such Party's obligations under this Agreement and (ii) are bound by obligations with respect to such Confidential Information at least as strict as those set forth in this Article 13. Each Receiving Party shall be fully liable to the Disclosing Party for any violation of the terms hereof by any such person. Each Party further covenants that at all times it shall have in place procedures designed to assure that each of its employees who is given access to the Disclosing Party's Confidential Information shall protect the privacy of such information.

g. Requests for Disclosure. In the event that a Receiving Party receives a request of the type described in clauses (iv) or (v) of Section 13.1(e) to disclose any Confidential Information, such Receiving Party shall: (i) notify the Disclosing Party thereof promptly after receipt of such request; (ii) consult with the Disclosing Party on the advisability of taking steps to resist or vary such request; and (iii) if disclosure is required or deemed advisable, cooperate with the Disclosing Party in any attempt that it may make to obtain a protective order or other reliable assurance that confidential treatment shall be accorded to such Confidential Information; provided, however, that such communication between the Parties is permitted by Applicable Law. Any out-of-pocket expenses incurred by a Party in connection with the foregoing shall be the responsibility of the Receiving Party that is subject to the request of the type described in clauses (iv) and (v) of Section 13.1(e).

h. Public Filings. If a Party or any Affiliate believes in good faith that it is required to file this Agreement or any other documents related to any Program as an exhibit to any report or other filing with the SEC, such Party or Affiliate shall notify the other Party in advance and shall file with the Secretary of the SEC an application requesting confidential treatment pursuant to Rule 24b-2 of the Securities Exchange Act of 1934, at or about the time of such filing; provided, however, that no such filing shall be deemed to violate this Article 13. If a Party or any Affiliate thereof intends to file or files this Agreement or any other documents related to the Programs with any other Regulatory Authority, such Party or Affiliate shall take all commercially reasonable efforts to obtain confidential treatment for this Agreement or such other documents; provided, however, that no such filing shall be deemed to violate this Article 13. Each Party shall use commercially reasonable efforts to cooperate with the other Party's or its Affiliates' attempts to obtain confidential treatment for this Agreement in accordance with this Article 13. In the event that confidentiality is not afforded by the applicable Regulatory Authority, the filing Party shall file a version of this Agreement that has been redacted in accordance with the reasonable requests of the other Party (for example, without limitation, with respect to pricing) to the extent permitted by Applicable Law.

13.2 Confidentiality upon End of Program. Upon the expiration or termination of this Agreement or of any Program, the provisions of Section 12.6 shall apply as applicable; provided, however, that any return or destruction shall not be required for Confidential Information required to be retained pursuant to the Receiving Party's disaster recovery plan; and provided, further, that the Receiving Party in possession of tangible property containing the Disclosing Party's Confidential Information may, if required by Applicable Law, retain an archived, encrypted copy of such material, subject to the terms of this Agreement, that may be used solely to comply with Applicable Law and may not be used for any other purpose.

13.3 Injunctive Relief. Each Receiving Party agrees that any unauthorized use or disclosure of Confidential Information of the Disclosing Party might cause immediate and irreparable harm to the Disclosing Party for which money damages might not constitute an adequate remedy. In that event, the Receiving Party agrees that injunctive relief may be warranted in addition to any other remedies the Disclosing Party may have.

13.4 Proper Disposal of Records. In connection with any disposal of information required under this Agreement either during the Term or after termination or expiration, the Parties shall use commercially reasonable measures designed to properly dispose of all records containing personally identifying information relating to End Users, whether in paper, electronic or other form, including adhering to policies and procedures that require the destruction or erasure of electronic media containing such personally identifying information so that the information cannot practicably be read or reconstructed

ARTICLE 14:
END USER DATA

14.1 Reserved

14.2 Ownership of End User Data and Program Materials. Notwithstanding anything to the contrary in this Agreement but subject to Article 10 hereof, Zenus shall own the FBO Account and shall have all rights, powers and privileges with respect thereto. The Parties may only use End User Data as expressly provided in this Agreement and in accordance with the Privacy Notices, and the Parties expressly agree that (i) the Privacy Notices shall, subject to Applicable Law, permit the sharing of End User Data with Program Manager and other third parties for such parties to market products and services other than other components of the Program to End Users, including their own products and services, and that (ii) Program Manager may undertake such marketing and solicitation activities in its sole discretion and in accordance with Applicable Law so long as they satisfy the criteria set out in (i) and do not compete with the Program during the term of this Agreement. For the avoidance of doubt, Program Manager shall have the right to market its own products to End Users upon and after termination or expiration of this Agreement.

14.3 Sharing of End User Data and Program Materials. Notwithstanding anything to the contrary in this Agreement, (i) Program Manager shall provide all End User Data, Program Materials and any other Program-related data and materials to Zenus upon Zenus' reasonable request, and (ii) sharing of any information between Program Manager and Zenus and the use thereof shall be subject to Security Guidelines and Applicable Law. Subject to the limitations in this Section, upon Program Manager's reasonable request, Zenus shall provide End User Data or segments for use by Program Manager in connection with the discharge of Program Manager's obligations or exercise of Program Manager's rights under this Agreement or in accordance with Zenus' and Program Manager's Privacy Notices. Neither Parties nor Third-Party Service Providers may, without the prior written consent, disclose End User Data or any segment thereof to any third party or Affiliate, except to the extent permitted by this Agreement or required under Applicable Law. To the extent that Program Manager discloses End User Data to one or more of its Third-Party Service Providers, Program Manager agrees to cause such parties to comply with the provisions of this Article 14.

14.4 **Data Obtained Independently by Program Manager**. Nothing contained in this Article 14 or elsewhere in this Agreement shall apply to, limit, or prohibit the use in any manner of any information owned or held by Program Manager or its Affiliates to the extent such information has been independently obtained by Program Manager or its Affiliates from a source other than Zenus and not in connection with the Program Manager Services or this Agreement (including the promotion or marketing of the Program), even if such information is duplicative of End User Data.

ARTICLE 15:
SECURITY BREACHES; DISASTER RECOVERY

15.1 **Security Program**. In the event that the Parties accesses, stores, transmits, or processes End User Data, Program Manager and Zenus shall, and shall require its Material Service Providers to establish and maintain appropriate administrative, technical, and physical safeguards designed to (i) protect the security, confidentiality, and integrity of the End User Data, (ii) protect against any anticipated or emerging threats or hazards to its security and integrity, (iii) protect against unauthorized access to or use of such information or associated records that could result in substantial harm or inconvenience to any End User or Applicant, and (iv) properly dispose of End User Data (collectively, the "**Security Program**"). At all times during the Term, (x) The Parties shall use the same degree of care in protecting the End User Data against unauthorized disclosure as it accords to its other confidential customer information, but in no event less than a reasonable standard of care, and (y) the Security Program shall be in compliance with Applicable Law.

15.2 **Testing**. Security Program shall be reviewed and tested internally annually, at Zenus' or own expense, in order to demonstrate compliance with all Applicable Law, including documented policies and procedures.

15.3 **Security Contact**. Each of the Parties has provided to the other Party the name and contact information of such Party's designated primary and secondary "**Security Contact**" appointed for the purpose of being contacted in connection with (i) any security breach or failure requiring immediate notification to a Party with respect to the unauthorized use or discloser of End User Data or (ii) any use or disclosure of a Party's Confidential Information except in the manner permitted by Article 15. A Party may from time to time change its primary and secondary Security Contact by providing written notice of such change in accordance with the notice requirements herein. In the event a named Security Contact is no longer in the employ of the applicable Party, or is otherwise unable or unwilling to perform the duties of a Security Contact as set forth herein, then a replacement Security Contact shall be named by such Party as soon as possible but in no event later than ten (10) days after the Security Contact has ceased employment with such Party or the occurrence of the event giving rise to such Security Contact's inability or unwillingness to perform such duties. Each Party shall further ensure that either the primary Security Contact or the secondary Security Contact is available at any given time to fulfill the purposes of this Section, unless otherwise approved in advance in writing by the other Party.

15.4 **Notification**. Program Manager agrees that in the event there is a breach of security of any End User Data, Confidential Information, or Program Records or any of Program Manager's its Third-Party Service Providers' or any Client's systems, networks, applications, databases or other property or premises resulting in actual or suspected unauthorized access to or use or disclosure of End User Data or other Confidential Information or any Program Records ("**Security Breach**"), Program Manager will immediately notify the primary, or if unreachable, the secondary Security Contact of the other Party (as identified in Section 15.3) of such breach, the nature of such breach, and the corrective action taken to respond to the Security Breach, and shall take all steps at its own expense to immediately limit, stop, or otherwise remedy such Security Breach, including cooperation and compliance with a Regulatory Authority. In the case of a Security Breach relating to Program Manager's Third-Party Service Provider or a Client, Program Manager shall provide to Zenus reports or documents prepared related to such Security Breach. Any notifications to Regulatory Authorities, End Users, Clients, or other third parties shall be coordinated with Zenus, subject to Zenus approval and addressed as set forth in Section 15.6. The foregoing obligations of this Section 15.5 shall be limited as to Third-Party Service Providers to the extent limited by the Parties' respective contracts with such providers, and each Party will use commercially reasonable efforts to secure corresponding pass-through rights and obligations in such contracts.

15.5 Expense Responsibility.

a. Responsibility. Subject to Article 18 hereof, if a Party, its Third-Party Service Provider, or in the case of Program Manager a Client suffers a Security Breach, Program Manager shall bear sole responsibility (as between the Parties) for all amounts with respect to:

i. notices and information (and related support) regarding unauthorized access to End User Data provided to (i) appropriate law enforcement agencies, Regulatory Authorities, and Networks, and (ii) affected Applicants and End Users whenever such notices are required by Applicable Law;

ii. fraud monitoring and consumer report (credit report) monitoring services provided to affected Applicants and End Users to the extent either Party deems such services to be necessary or appropriate in the exercise of its commercially reasonable judgment;

iii. replacement of access devices if either Party reasonably determines replacement is necessary; and

iv. fines or penalties imposed by a Network or Regulatory Authority, as well as all other Losses, arising out of or relating to the Security Breach.;

in all such instances to the extent that such Security Breach was not due to the negligence, willful misconduct, violation of Applicable Law or breach of this Agreement by Zenus.

15.6 Disaster Recovery Plan. At all times during the Term and for so long as this Agreement remains in effect, each Party shall prepare and maintain disaster recovery, business resumption, and contingency plans appropriate for the nature and scope of the activities of, and the obligations hereunder to be performed by such Party. Each Party shall ensure that such plans are sufficient to enable such Party to promptly resume the performance of its obligations hereunder in the event of a natural disaster, destruction of facilities or operations, utility or communication failures, or similar interruption in operations and shall ensure that all material records, including End User Data, are backed up in a manner sufficient to survive any disaster or business interruption. These plans shall be in compliance with Applicable Law and consistent with industry standards for the banking industry. Each Party shall make available to the other Party copies of its disaster recovery, business resumption, and contingency plans and shall make available to the other Party copies of any changes thereto. Program Manager and Subservicer shall annually, test such disaster recovery, business resumption, and contingency plans as may be appropriate and prudent in light of the nature and scope of the activities and operations hereunder.

ARTICLE 16:
Reserved

ARTICLE 17:
EXCLUSION OF CONSEQUENTIAL DAMAGES; LIMITATION OF LIABILITY

17.1 No Special Damages. UNLESS OTHERWISE AGREED, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER WHETHER IN CONTRACT, TORT, EQUITY OR OTHERWISE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING, BUT NOT LIMITED TO, LOST PROFITS, EVEN IF SUCH PARTY HAS KNOWLEDGE OF THE POSSIBILITY OF SUCH DAMAGES ARISING FROM OR

RELATED TO THIS AGREEMENT; PROVIDED, HOWEVER, THAT THE LIMITATIONS SET FORTH IN THIS SECTION SHALL NOT APPLY TO (A) A BREACH OF ARTICLE 13 OR 14, OR (B) WITH RESPECT TO EITHER PARTY, ANY CLAIM THAT ARISES OUT OF SUCH PARTY'S GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR FRAUD.

17.2 **Disclaimers of Warranties**. EXCEPT AS EXPRESSLY STATED IN THIS AGREEMENT, EACH OF THE PARTIES SPECIFICALLY DISCLAIMS ALL WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, ARISING OUT OF OR RELATED TO THIS AGREEMENT, INCLUDING ANY WARRANTY OF MARKETABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT, AND IMPLIED WARRANTIES ARISING FROM COURSE OF DEALING OR COURSE OF PERFORMANCE, EACH OF WHICH IS HEREBY EXCLUDED BY AGREEMENT OF THE PARTIES.

ARTICLE 18:
INDEMNIFICATION; DAMAGES

18.1 **Indemnification Obligation by Program Manager**. Program Manager covenants and agrees to indemnify and hold Zenus, its Affiliates, and their respective officers, directors, employees, agents, successors, and permitted assigns ("**Zenus Indemnified Parties**") harmless against any Losses arising out of Claims resulting from or relating to:

a. any failure by Program Manager to perform or comply with any covenant or obligation required to be performed or complied with by Program Manager under or pursuant to this Agreement;

b. any breach by Program Manager of a representation or warranty made by Program Manager under or pursuant to this Agreement;

c. any infringement by Program Manager of any third party's marks or intellectual property rights in connection with the Program or as a result of Zenus' use of Program Manager Marks hereunder;

d. any noncompliance with or violation by Program Manager of any Applicable Law (including with respect to Program Materials), or the fraud, gross negligence or willful misconduct by or of Program Manager, Client, or of any of Program Manager's Affiliates, employees, officers, directors, agents, representatives, or independent contractors (each such, including Third-Party Service Providers, a "**Program Manager Contractor**");

e. any failure on the part of Program Manager or any Program Manager Contractor to comply with or discharge any of its or their obligations, liabilities, or other amounts due or owing by Program Manager or such Program Manager Contractor to any third party, including, in the case of Program Manager, due or owing to any Program Manager Contractor;

f. any misrepresentation or false or misleading statement made by Program Manager, or Program Manager Contractors to any Person, Regulatory Authority, or legislative body regarding Program Manager, Program, this Agreement or the terms or conditions hereof; or

g. any dispute, including litigation, arbitration, or mediation caused by Program Manager, with or involving an End User, Client, Applicant or Program Manager Contractor in connection with the Program or this Agreement.

18.2 **Limited Exception and Conditions**. Program Manager's indemnification obligations under this Section 18 shall exclude any Losses to the extent such Losses arise from (a) an act of fraud, embezzlement, or criminal activity by a Zenus Indemnified Party, (b) the gross negligence or willful misconduct by a Zenus Indemnified Party, or (c) a failure of Zenus to comply with or to perform its obligations under this Agreement.

18.3 **Indemnification Obligation by Zenus**. Zenus covenants and agrees to indemnify and hold Program Manager, its Affiliates, and their respective officers, directors, employees, agents, and permitted assigns (the "**Program Manager Indemnified Parties**") harmless against any Losses arising out of Claims resulting from or relating to:

a. any infringement by Zenus of any third party's marks or intellectual property rights as a result of Program Manager's use of the Zenus Marks hereunder,

b. any noncompliance by Zenus with or violation of any Applicable Law or the gross negligence, fraud, or willful misconduct by or of Zenus or of any of Zenus' Affiliates, employees, officers, directors, agents, representatives, or independent contractors (each such, including Third-Party Service Providers, but excluding Program Manager or Program Manager Third-Party Providers, a "**Zenus Contractor**");

c. any failure by Zenus to perform or comply with any covenant or obligation required to be performed or complied with by Zenus under or pursuant to this Agreement;

d. any breach of a representation or warranty made by Zenus under or pursuant to this Agreement;

e. any failure on the part of Zenus or any Zenus Contractor to comply with or discharge any of its or their obligations, liabilities, or other amounts due or owing by Zenus or such Zenus Contractor to any third party, including, in the case of Zenus, due or owing to any Zenus Contractor;

f. any misrepresentation or false or misleading statement made by Zenus or Zenus Contractors to any Person, Regulatory Authority, or legislative body regarding Zenus, Program, this Agreement or the terms or conditions hereof; or

g. any dispute, including litigation, arbitration, or mediation caused by Zenus, with or involving an End User, Client, Applicant or Program Manager Contractor in connection with the Program or this Agreement.

18.4 **Limited Exception and Conditions**. Zenus' indemnification obligations under this Article 18 shall exclude any Losses to the extent such Losses arise from (a) an act of fraud, embezzlement, or criminal activity by a Program Manager Indemnified Party, (b) the negligence or willful misconduct by a Program Manager Indemnified Party, or (c) a failure of Program Manager to comply with or to perform its obligations under this Agreement.

18.5 **Defense of Claims**.

a. Notice. If any Claim is commenced that may give rise to a right of indemnification, or any knowledge is received of a state of facts that, if not corrected, may give rise to a right of indemnification, the indemnified Party shall give prompt written notice to the indemnifying Party. The failure to give such notice shall not, however, relieve the indemnifying Party of its indemnification obligations except to the extent that the indemnifying Party is actually harmed thereby.

b. Right to Defend Claim. The indemnifying Party shall have the right to defend any such Claim in its name and at its expense, shall select the counsel for the defense of such Claim as approved by the indemnified Party, and shall cooperate with the indemnified Party in the conduct of the defense against such Claim; provided, however, that the indemnifying Party shall not have the right to defend any such Claim if (i) it refuses to acknowledge fully its obligations to the indemnified Party; (ii) it contests, in whole or in part, its indemnification obligations; (iii) it fails to employ appropriate counsel approved by indemnified Party to assume the defense of such Claim or refuses to replace such counsel upon the indemnified Party's reasonable request; (iv) the indemnified Party advises the indemnifying Party that there are issues that could raise possible conflicts of interest between the indemnifying Party and the indemnified Party or that the indemnified Party has claims or defenses that are separate from or in addition to the claims or defenses of the indemnifying Party; or (v) such

Claim seeks an injunction or cease and desist order; provided further, that Program Manager may not, as an indemnifying Party or otherwise, defend against a Claim or select the counsel for the defense of a Claim if the Claim was brought against Zenus or its Affiliates by a Regulatory Authority. In each such case, the indemnified Party shall have the right to direct the defense of the Claim and retain its own counsel, and the indemnifying Party shall pay the cost of such defense, including reasonable attorneys' fees and expenses.

c. Indemnifying Party Election. If the indemnifying Party elects and is entitled to defend such Claim, it shall, within thirty (30) days (or sooner, if the nature of the Claim so requires), notify the indemnified Party of its intent to do so, and the indemnified Party shall, at the expense of the indemnifying Party, cooperate in the defense of such Claim. In such case, the indemnified Party shall have the right to participate in the defense of any Claim with counsel selected by it at its own cost and expense.

d. Indemnifying Party Obligation. The indemnifying Party shall have no obligation to pay the monetary amount of the settlement of any Claim entered into by the indemnified Party without the prior written consent of the indemnifying Party (which consent shall not be unreasonably withheld or delayed). Notwithstanding the indemnifying Party's right to direct the defense against any Claim, the indemnifying Party shall not have the right to compromise or enter into an agreement settling any claim, suit, demand, or action without the prior written consent of the indemnified Party (which consent shall not be unreasonably withheld or delayed).

ARTICLE 19:
GENERAL PROVISIONS

19.1 Relationship of Parties. Program Manager and Zenus are independent parties, and the nature and extent of their arrangement is set forth in this Agreement and other written documents and agreements setting forth their rights, duties, and obligations with respect to their various relationships. Program Manager and Zenus are independent contractors, and are not partners, and nothing contained in this Agreement shall be construed as creating a partnership, joint venture, or any similar relationship other than as independent contracting parties.

19.2 Governing Law. This Agreement shall be governed by the internal laws of Commonwealth of Puerto Rico without regard for the principles of conflict or choice of laws thereof.

19.3 Trial by Jury. EACH PARTY ALSO, KNOWINGLY AND WILLINGLY, AND FOLLOWING CONSULTATION WITH COUNSEL, HEREBY UNCONDITIONALLY AND IRREVOCABLY WAIVES ANY RIGHT TO A TRIAL BY JURY IN CONNECTION WITH ANY DISPUTE ARISING UNDER THIS AGREEMENT.

19.4 Severability. In the event that any part of this Agreement is deemed by a court, Regulatory Authority, or other public or private tribunal of competent jurisdiction to be invalid or unenforceable, such provision shall be deemed to have been omitted from this Agreement. The remainder of this Agreement shall remain in full force and effect and shall be modified to any extent necessary to give such force and effect to the remaining provisions, but only to such extent. To the extent possible, each provision of this Agreement shall be interpreted in such a manner as to be effective and valid under Applicable Law, but if any provision of this Agreement shall be held to be invalid, illegal, or unenforceable, such provision shall be ineffective only to the extent of such invalidity, illegality, or unenforceability, without rendering invalid, illegal, or unenforceable the remainder of such provision or the remaining provisions of this Agreement.

19.5 Survival. Any provision that either so expressly states or that by its nature should survive termination or expiration of this Agreement shall survive such termination or expiration.

19.6 Successors and Third Parties. Except as limited by Section 19.7, this Agreement and the rights and obligations hereunder shall bind and inure to the benefit of the Parties and their successors and permitted assigns, and the obligations and liabilities assumed in this Agreement by the Parties shall be binding upon their respective successors and permitted assigns.

19.7 **Assignments**. The rights and obligations of Zenus under this Agreement are personal and may not be assigned either voluntarily or by operation of law. Any attempted assignment in violation hereof shall be null and void ab initio.

19.8 **Notices**. All notices or other communications required to be given in writing hereunder shall be delivered by certified or express mail or overnight courier service to the following address, or at such other address of which the notifying Party hereafter receives notice in conformity with this section:

If to Zenus: Gabriel Viera - gv@zenus.com

With a copy to: David Claudio - dclaudio@zenus.com

If to Program Manager: Fahed Jaarah - fahed.jaarah@mal.ai

With a copy to: Angel Wesley - angel.wesley@mal.ai

Such notice shall be effective and deemed to have been given and received: (a) if given by a nationally recognized and reputable overnight delivery service company, the day on which the notice is delivered by the delivery service company to such Party; or (b) if given by certified mail, when received or refused.

19.9 **Waivers**. Neither Party shall be deemed to have waived any of its rights, powers, or remedies hereunder except in writing signed by an authorized agent or representative of the Party to be charged. Either Party may, by an instrument in writing, waive compliance by the other Party with any term or provision of this Agreement on the part of the other Party to be performed or complied with. The waiver by either Party of a breach of any term or provision of this Agreement shall not be construed as a waiver of any subsequent breach.

19.10 **Certain Interpretative Matters**. As used herein, (a) the terms “include” and “including” are meant to be inclusive and shall be deemed to mean “include without limitation” or “including without limitation”; (b) unless the context demands otherwise, the word “or” shall have the inclusive meaning identified with the phrase “and/or”; (c) references to “dollars” or “$” shall be to United States dollars; (d) the terms “his” or “her” apply to all genders; (e) any Article, Section, Subsection or other headings contained in this Agreement and the Recitals at the beginning of this Agreement are for reference purposes only and shall not affect in any way the meaning or interpretation of this Agreement; (f) any reference to a statute or statutory provision shall mean such statute or statutory provision as it has been amended through the date as of which the particular portion of the Agreement is to take effect, or to any successor statute or statutory provision relating to the same subject as the statute or statutory provision so referenced in this Agreement, and to any then applicable rules or regulations promulgated thereunder, unless otherwise provided; (g) the words “herein,” “hereof,” “hereunder” and words of like import shall refer to this Agreement as a whole (including its Schedules and Exhibits), unless the context clearly indicates to the contrary (for example, that a particular Section, Schedule or Exhibit is the intended reference); (h) words used herein in the singular, where the context so permits, shall be deemed to include the plural and vice versa; (i) a reference in this Agreement contemplating certain action by Zenus “after consultation with” or “in consultation with” or “in cooperation with” Program Manager does not mean that the consent or approval of Program Manager is required or contemplated in connection with such action; and (j) unless the context otherwise requires or unless otherwise provided herein, the terms defined in this Agreement that refer to a particular agreement, instrument or document also refer to and include all renewals, extensions, modifications, amendments and restatements of such agreement, instrument, or document.

19.11 **Entire Agreement; Amendments**. The body of this Agreement, together with the Exhibits and Schedules, and any ancillary agreement to which both Parties are parties, constitutes the entire agreement by the Parties (and is referred to as the “**Agreement**”) and supersedes any other agreement, whether written or oral, that may have been made or entered into between or among the Parties relating to the matters contemplated hereby. The headings, captions, headers, footers, and version numbers contained in this Agreement are inserted for convenience only and shall not affect the meaning or interpretation of this Agreement. Each Party has reviewed this Agreement with counsel and, as a result, neither should be regarded as the drafter for purposes of any rule or principle of construction, including any principle that would construe any ambiguity against the drafter. The terms of this Agreement and of the Program may be modified from time to time when such amendment is necessary to comply with Applicable Laws or Regulatory Authorities. In the event of a conflict between a provision of the body of this Agreement and a provision in an Exhibit, Schedule or amendment, the body of this Agreement shall control to the extent of the inconsistency, except were stated expressly to the contrary.

19.12 Counterparts. This Agreement may be executed and delivered by the Parties in counterpart, each of which shall be deemed an original and both of which together shall constitute one and the same instrument. Proof of execution of this Agreement may be executed delivered by the Parties electronically, and fully executed electronic versions of this Agreement, or reproductions thereof, shall be deemed to be original counterparts.

19.13 **Disputes**.

a. Duty to Notify. In the event of any dispute, controversy, or claim arising out of or relating to this Agreement or the construction, interpretation, performance, breach, termination, enforceability or validity thereof (hereinafter, a "**Dispute**"), the Party raising such Dispute shall notify the other promptly and no later than sixty (60) days from the date of its discovery of the Dispute. Except to the extent prohibited by Applicable Law, a failure so to notify shall be deemed a waiver by that Party of its right to raise such Dispute.

b. Cooperation to Resolve Disputes. The Parties shall cooperate and attempt in good faith to resolve any Dispute promptly by negotiating between persons who have authority to settle the Dispute and who are at a higher level of management than the persons with direct responsibility for administration and performance of the provisions or obligations of this Agreement that are the subject of the Dispute.

c. Arbitration. Any Dispute that cannot otherwise be resolved as provided in paragraph (b) above shall be resolved by arbitration conducted in accordance with the commercial arbitration rules of the American Arbitration Association, and judgment upon the award rendered by the arbitral tribunal may be entered in any court having jurisdiction thereof. The arbitration tribunal shall consist of three arbitrators with expertise in the payments and technology industries, with one appointed by each Party and the third by the two other arbitrators, although the Parties may choose in their sole discretion to agree to a single arbitrator. The place of arbitration shall be in New York City, New York, unless the Parties shall have agreed to another location within fifteen (15) days from the first referral of the dispute to the American Arbitration Association. The arbitral award shall be final and binding. The Parties waive any right to appeal the arbitral award, to the extent a right to appeal may be lawfully waived.

d. Judicial Recourse. Notwithstanding the provisions of Section 19.13(c), each Party retains the right to seek judicial assistance: (i) to compel arbitration, (ii) to obtain interim measures of protection until the arbitrator(s) can be empaneled and have determined whether and in what form such measures should be continued, and (iii) to enforce any decision of the arbitrator(s), including the final award. The Parties submit to the exclusive jurisdiction of the state and federal courts located in Puerto Rico, for purposes of clauses (i) and (ii) of this paragraph but may seek relief in any court that otherwise may possess jurisdiction over the Parties with respect to clause (iii).

e. Confidentiality of Proceedings. The arbitration proceedings contemplated by this Section shall be as confidential and private as permitted by Applicable Law; provided, however, that the Parties are permitted to disclose the proceedings to accountants, legal counsel, professional advisors and Regulatory Authorities, or in any judicial proceeding permitted pursuant to this Section. To that end, and except as just noted, the Parties shall not disclose the existence, content or results of any proceedings conducted in accordance with this Section, and materials submitted in connection with such proceedings shall not be admissible in any other proceeding.

19.14 **Accounting**. The Parties agree that all accounting calculations in this Agreement shall be performed in accordance with generally accepted accounting principles or other generally accepted accounting methods in the United States. The Parties further agree to work together in good faith to reconcile any accounting discrepancies.

19.15 **Counterparts**. This Agreement may be executed and then delivered via the sending of PDF or other copies thereof via e-mail and in one or more counterparts, each of which shall be an original but all of which taken together shall constitute one and the same Agreement.

[Signatures on Following Page]

IN WITNESS WHEREOF, this Agreement is executed by the Parties' authorized officers or representatives and shall be effective as of the date first above written.

Mal Money, Inc.

Signed by:

By: ______________________

0C8EC9AF413D4D4...

Name: Abdallah Abu Sheikh

Its: Sole Director

Zenus Bank International, Inc.

By: ______________________

Name: Jorge M Soltero

Its: Head of Risk

Schedule 3.1

SERVICES TO BE PROVIDED BY PROGRAM MANAGER

Without limiting the generality of the Agreement, the following is a general description of the Services to be provided by Program Manager on Zenus' behalf, either directly or through Third-Party Service Providers. No material change to the Services shall be effective without Zenus' prior written consent.

Marketing Clients and establishing new Programs, including but not limited to:

- assist with due diligence and KYC process of potential Clients;
- assist with the completion of the applicable Program Schedule and Client Services Agreement; and
- complete with technical integration of Client to facilitate the timely launch of the Program.

If Cards are part of the Program, process Card Transactions and to maintain the system of records of Transactions associated with each Card, including but not limited to the following, in each case subject to the approval of Zenus:

- providing End User Agreements and all disclosures required by Applicable Law;
- processing of all authorization and settlement transactions made with or on a Card;
- processing of all payments and adjustments made to a Card
- maintaining and updating End User information
- providing interface to Program Manager's vendors for necessary third-party servicing including card embossing, letter generation and statement generation;
- providing to Program Manager reporting and documentation of all Card sales, settlement and Card portfolio monetary transactions;
- cooperating and working with all parties involved in the sales, issuance, loading, acceptance of the Cards, and merchants accepting the Card for purchases or cash withdrawals;
- providing chargeback monitoring and processing as requested by Program Manager within Network and regulatory guidelines;
- providing such training as reasonably necessary to enable Program Manager's personnel to successfully use these Services;
- maintaining, updating and archiving End User information and transaction related information, from which Zenus will be able to generate reports;
- providing reasonable assistance, on an on-going basis, to Zenus in resolving End User or vendor problems related to the Cards or the use, issuance, sale or reloading thereof;
- providing and monitoring the data communication between Program Manager or vendors for reporting purposes and for consolidated transaction processing;
- providing a mechanism for End User dispute resolution; and
- providing End User information on a daily basis to Program Manager or third-party for collection process.

Processing all End User Applications on behalf of Zenus, including, but not limited to:

- providing End User Agreements and all disclosures required by Applicable Law;
- reviewing Applicants' End User Applications and applying Approval Guidelines to determining whether to recommend approval of those applications
- providing adverse action notices as necessary
- providing information to Zenus and Subservicer necessary to open Client Sub-Accounts and End User Sub-Accounts
- collecting and maintaining End User identification

- conducting initial review of all End User Applications and ongoing review of Transactions to ensure compliance with the Approval Guidelines and Applicable Law
- authorizing Card activation

If Cards are part of the Program, card creation including:

- Card design
- Card personalization and mailing
- providing monthly and other periodic account statements
- customer service in accordance with the terms of this Agreement
- any other services necessary or desirable to effectuate the Program or as agreed upon by Zenus and Servicer from time to time

Back-office support functions, including:

- individual Card maintenance (if applicable)
- Transaction and payment authorization, decline, processing, clearing and settlement and all accounting relating to Cards (if applicable)
- ensuring Programs (including Program Materials) comply with Applicable Law and are approved by Zenus
- integrating Programs with applicable Third-Party Service Providers or, to the extent necessary
- statement preparation and issuance
- balancing and reconciling
- Overdraft monitoring and collection
- fraud prevention, risk management and security control services
- data capture and reporting and information management services
- providing Zenus with reports detailing transactions and servicing with respect to each Program marketed by Program Manager on behalf of Zenus as may be mutually agreed by the Parties from time to time at no additional cost to Zenus within the reasonable capacity of Program Manager
- providing appropriate notices to Zenus as required hereunder
- helpdesk and technical support for Zenus
- closing Client Sub-Accounts, End User Sub-Accounts, and/or Cards

If Cards are included in the Program, Customer Service, including:

- Card and Transaction dispute processing and resolution, and any other informal disputes or resolutions as needed from the End User, as promptly as commercially reasonable, and not later than full resolution within sixty (60) days
- lost and stolen Card reporting

Compliance Functions, as set forth in Schedule 4.1(a).

Schedule 3.6(a)

AUDIT REQUIREMENTS

Program Manager shall cause to be performed, and a report thereof provided to Zenus of the following internal audits and reviews or their substantial equivalents, all of which shall be performed and provided at Program Manager's expense.

	Frequency	**Performed or Provided By**
SAS 70 (SSAE18) **Financial Review**	Annual	3rd Party chosen exclusively by Program Manager
– ISO 27001, PCI e ISO 27701	Annual	3rd Party chosen exclusively by Program Manager
ISAE 3402	Annual	3rd Party chosen exclusively by Program Manager
– ISAE 3402	Annual	3rd Party chosen exclusively by Program Manager

Schedule 3.7(e)

REPORT REQUIREMENTS

The following reports shall be provided to Zenus by Program Manager consistent with the Agreement: Reported Immediately

1. Suspicious activity as identified by Program Manager.
2. Notice to Zenus of all legal actions, including subpoenas, levies, information requests and garnishments. Under no circumstances (other than as expressly prohibited by Applicable Law) shall these notices be delayed longer than three (10) business days following Program Manager's receipt.
3. Security Breaches.
4. Copy of all materials or correspondence relating to significant or material matters (whether negative or positive) that Program Manager receives from any Network or any other third-party relating specifically to Zenus' sponsorship of the program(s).

Reported Quarterly

1. List of new and terminated Third-Party Service Providers participating in the Program.

Schedule 3.11

APPROVED THIRD-PARTY SERVICE PROVIDERS

Card Vendor — [**NAME OR TBD**]

- Safeguarding of all digital key components relating to CVV and PIN encoding and EMV programming
- Card creation, production and shipment, including
  - purchase and safekeeping of plastic stock
  - embossing and encoding of Cards
  - printing of Card carriers
  - mailing or other delivery of Cards
  - preparation and mailing of PIN mailers
  - preparation and mailing of all other documents required or otherwise to be sent to End Users
  - all other Program-related mailings to End Users including shipping costs and postage

Schedule 4.1(a)

PROGRAM MANAGER COMPLIANCE FUNCTIONS

This exhibit outlines Program Manager's compliance obligations and functions relative to the Programs. These obligations and functions are subject to change as amendments, adjustments and revisions to the Agreement, the Program, Applicable Laws or regulatory expectation are made or occur. Any change shall only be valid once is written amended by the Parties herein. The obligations and functions listed below are intended to further clarify certain requirements and obligations set forth in the Agreement, and do not replace any other obligations set forth in the Agreement.

Model Risk Management

For any models used by Program Manager for the Programs, Program Manager will maintain an adequate Model Risk Management Program, in accordance with banking standards and Applicable Law(such as FIL 22-2017- -Adoption of Supervisory Guidance on Model Risk Management), including processes and controls during model development, as well as independent testing and validation.

Compliance Management System

Program Manager will implement and maintain a Compliance Management System ("**CMS**") meeting any Commissioner guidelines, including the three components of a CMS: (1) board of directors ("**Board**"), or committee thereof, management and oversight; (2) a compliance program (policies and procedures, training, monitoring and testing, complaint response, risk assessments, issue and exam management, and governance); and (3) compliance audit as provisioned in the Schedule 3.6 (a). Program Manager's CMS is subject to meet Applicable Law and Regulatory Authority. Modifications and enhancements to the CMS may be implemented once is determined due to changes on Applicable Law or Regulatory Authority requests.

Program Manager will implement and maintain compliance policies for all Applicable Laws and regulations, and Program Manager policies will be reviewed and approved at least annually by both Zenus and Program Manager's Board and a senior management committee with responsibilities for risk management (which committee must be made up of certain Program Manager executives or key members of management) ("**Committee**").

Program Manager's Committee will meet at least quarterly and address the results of the compliance testing of Program Manager's CMS, with a signed Committee attestation that certifies that the results of the compliance testing and any action plans necessary to address any exceptions in the compliance testing were discussed by the Committee; the attestation must be signed by the chairperson of the Committee.

Program Manager will appoint a Compliance Officer, who shall be experienced with deposit and lending regulations and bank compliance matters, to oversee the activities of Program Manager and the Clients in respect of the Programs from a compliance perspective.

Program Manager will maintain an AML program, sufficient to assure AML compliance at all times. Program Manager will report all suspicious activity to Zenus.

Program Manager will review and test Program Manager compliance policies at least annually.

Program Manager will monitor and evaluate Clients regularly on their compliance with Applicable Laws, including but not limited to AML.

Regulatory Authorities will perform regular monitoring and oversight of Program Manager's CMS, including regular and ad hoc onsite visits by Regulatory Authority personnel. Program Manager will comply with all requests made by Regulatory Authority to facilitate such monitoring, oversight, and onsite visits. Program Manager shall not be obliged to open any confidential information of its Clients

In addition to the foregoing, Program Manager's CMS shall include the following elements:

Customer Identification Program (CIP)

Program Manager is responsible for implementing a written Customer Identification Program (CIP), which at minimum includes the elements listed below.

- Collecting the following End User identifying information:
    - Full Name
    - Date of birth for individuals
    - Address, which shall be:
        - For an individual, a residential or business street address;
        - For an individual who does not have a residential or business street address, an Army Post Office (APO) or Fleet Post Office (FPO) box number;
        - For a person other than an individual (such as a corporation, partnership, or trust), a principal place of business, local office, or other physical location.
    - Identification number, which shall be:
        - For a U.S. person, a taxpayer identification number; or
        - For a non-U.S. person, one or more of the following: A taxpayer identification number; number and country of issuance of any other government-issued document evidencing nationality or residence and bearing a photograph or similar safeguard; or
        - Subject to Zenus' approval, when opening an account for a foreign business or enterprise that does not have an identification number, Program Manager will request alternative government-issued documentation certifying the existence of the business or enterprise.
- Program Manager will obtain and maintain the necessary information required under FinCEN's Final Rule on Beneficial Ownership and Risk-Based Customer Due Diligence (31 CFR § 1010.230 and § 1020.210).
- Program Manager will provide new End Users with the below, or similar subject to approval by Zenus, notice requesting CIP information to verify their identity:

<u>**Customer Identification Requirements**</u>

> **IMPORTANT INFORMATION ABOUT PROCEDURES FOR OPENING A NEW ACCOUNT –** To help the government fight the funding of terrorism and money laundering activities, federal law requires all financial institutions and their third parties to obtain, verify, and record information that identifies each person who opens a new account. What this means for you: When you open an account, we will ask for your name, address, date of birth, and other information that will allow us to identify you. We may ask to see your driver's license or other identifying documents.

- Program Manager's CIP will contain procedures for verifying the identity of the End User prior to allowing opening of the Client Sub-Account and any End User Sub-Account. The procedures will describe when Program Manager will use documents, non-documentary methods or a combination of both methods as described below.
    - Verification through documents: For Programs relying on documentary verification, the CIP will contain procedures that set forth the acceptable documentation, which at minimum includes the collection of one unexpired government-issued ID and one supplemental document.

Acceptable forms of unexpired government-issued identification include the following:

- For an individual, unexpired government-issued identification evidencing nationality or residence and bearing a photograph or similar safeguard, such as a driver's license or passport; and
- For a person other than an individual (such as a corporation, partnership, or trust), documents showing the existence of the entity, such as certified articles of incorporation, a government-issued business license, a partnership agreement, or trust instrument.

Acceptable forms of supplemental documentation include the following:

- Research in bureaus validating information provided

Zenus requires that Program Manager confirm at least two of the following data points when verifying a Customer's identity via documentary or non-documentary methods:

- Confirm that the date of birth supplied matches to the name by comparing to the name and date of birth on the photo ID or through a third-party identity verification (IDV) provider
- Confirm that the name supplied matches to the name by comparing to the name on the photo ID or through a third-party IDV provider
- Confirm the ID number supplied matches to name by comparing to the name and ID number on the photo ID or through a third-party IDV provider
- Confirm that the permanent address supplied matches to the name by comparing against the name and address on the photo ID or through a third-party IDV provider or proof of address document.
- In the case of a business customer, articles of incorporation or certificate of good standing

- Program Manager will develop and maintain procedures to address circumstances in which a End User's identity cannot be verified and include the following:
  - Criteria or decision points at which an account should not be opened
  - When Program Manager should close an account, after attempts to verify a Customer's identity have failed.
- In accordance with the jointly developed policies of Program Manager and Zenus, Program Manager agrees to review and monitor the transactional data for all non-U.S. citizen End Users in order to ensure compliance with the mutually developed onboarding procedures and processes under the Agreement.

Comparison with Government Lists

- Program Manager will develop and maintain procedures for determining whether a End User appears on the Specially Designated Nationals and Blocked Persons ("SDN") list issued by OFAC. Program Manager's procedures will at minimum include the following:
  - Process to screen Applicants prior to account opening;
  - Process to screen End Users when updates to the lists are made;
  - Process to update the watchlist and test that updates have been correctly implemented;
  - Process to review potential matches to watchlist entities, which at minimum, will include clearing potential matches to watchlist entities based on, at minimum, two customer identifying factors, such as name and date of birth OR name and country of citizenship; and
  - Process for escalating positive matches to Zenus.
- Program Manager will not open or maintain accounts for or issue Cards to any OFAC-sanctioned person or known or suspected terrorists or terrorist organizations.
- Program Manager will notify the Zenus compliance department immediately of any positive matches to any terrorist or OFAC-sanctioned persons.

- Program Manager will maintain documentation demonstrating Program Manager's review of potential matches and factors contributing to Program Manager's decision that an End User was not a match to the watchlist entry.
- Program Manager will develop, implement and maintain controls to prevent the loading of more than the agreed limits to and between End User accounts.

Record Keeping Requirements

- Program Manager is required to retain all End User information and verification records and information for five (5) years from the date of the last Transaction or five (5) years from the date of the End User Sub-Account closure. Program Manager will also provide Zenus with access to this information for five (5) years from the date of the last Transaction or closure.
- Program Manager is required to retain Transaction-specific records generated in the ordinary course of business for five years, including any information necessary to reconstruct activity associated with the End User Sub-Account. The information will reflect the Transaction's amount, location, date and time, and any other unique identifier. Program Manager will also provide Zenus with access to this information for five years from the date of the last Transaction or five years from the date of the account closure.
- Program Manager will retain information and records as prescribed by Applicable Laws for the Program.

Transaction Monitoring

- Program Manager will establish, maintain, and update at least annually procedures for the identification and review of potentially suspicious and fraudulent activity.
- Program Manager will develop and maintain a suspicious and fraudulent activity monitoring coverage assessment that identifies the customer, transactional, and geographical risks associated with the Program and develop mitigating controls to prevent and detect potentially suspicious or fraudulent activity associated with the risks. Program Manager will update this coverage assessment as program features change, including, but not limited, to changes in Program's customer base, geographic footprint, or transactional funding, transfer, or withdrawal methods. Program Manager will provide this assessment to Zenus for approval prior to the program going live, prior to the implementation of new features, and as requested by Zenus.
- Program Manager will perform on-going monitoring for suspicious and fraudulent activity for all risks identified in the suspicious and fraudulent activity monitoring coverage assessment.
- Program Manager will maintain documented policies and procedures for responding to official requests from government and law enforcement agencies and escalation to Zenus as appropriate.
- Program Manager will develop, implement, and maintain controls to prevent the loading or remitting of more limits agreed upon with Zenus.

Compliance Reporting

- Program Manager will provide Zenus compliance a quarterly report for each End User containing the customer information as requested by Zenus
- Program Manager will provide Zenus with a quarterly report of all Client Sub-Accounts and End User Sub-Accounts for End Users that were closed in the previous in a time period mutually agreed between Zenus and Program Manager.

Marketing and Advertising

- Program Manager and Zenus will agree prior to the launch of any Program on guidelines to govern all advertising and marketing materials and conduct periodic (at least quarterly, unless Zenus agrees to the contrary) reviews of such materials to ensure compliance with the guidelines and Applicable Law. The

Parties may revise the guidelines on mutual agreement at any time; provided that Zenus reserves the right in its reasonable discretion to require changes to the guidelines that it deems necessary to avoid legal, regulatory, or reputational harm to Zenus.

Schedule 4.1(b)

PROHIBITED MCC CODES

MCC	Description
5967	Non–face-to-face adult content and services Merchants
7841	Non–face-to-face adult content and services Merchants
5122	Non–face-to-face pharmaceutical Merchants
5912	Non–face-to-face pharmaceutical Merchants
5993	Non–face-to-face tobacco product Merchants
4816	High-risk cyberlocker Merchants
7801	Gambling merchants conducting horse racing, dog racing, or non-sports intrastate Internet gambling
7802	Gambling merchants conducting horse racing, dog racing, or non-sports intrastate Internet gambling
7994	Skill games merchants
7800	State lottery merchants
6211	high-risk securities
4829	Money Transfer
6010	Manual Cash Disbursements
9754	Horse racing, dog racing and non-sport internet gaming

Schedule 4.4(d)

COMPLAINTS REPORTING POLICY

Program Manager has implemented a Complaints and Error Resolution Policy that incorporates Regulation E requirements that cover the relevant End Users and Transactions. That policy includes the following:

a. Program Manager will share a spreadsheet log of all Complaints, regardless of materiality, on a twice-monthly basis;

b. Program Manager shall arrange a monthly call with Zenus to discuss Complaints;

c. If Zenus would like to discuss any particular Complaint listed in the spreadsheet log or see records with respect to that Complaint, then it may submit a request to Program Manager so that it may prepare this information in advance of the monthly standing call;

d. In the monthly standing call with Zenus, and regardless of whether any specific request was previously made by Zenus, Program Manager will provide a summary of learnings from the previous month cases, and highlight problematic Complaints including “unresolved complaints” (e.g., high value, multiple complaints from the same End User, length of time to resolution);

e. If Zenus would like to see an updated current spreadsheet log at any time, it may request this from Program Manager; and

f. If Zenus would like to see the audit trail for any particular Complaint, then Zenus should submit a request to Program Manager, and Program Manager will provide all relevant records up to the date of Zenus’ request within 3 business days of Zenus’ request.

Schedule 11.1

Zenus Bank FEES

Service: USD FBO and Virtual Accounts		Fee
Onboarding Fee*		$10,000
Monthly Minimum Fee	Month 1-10	Waived
	Month 11+	$15,000
Minimum Balance		$50,000
Annual Due Diligence		$1,000
Swift investigations		$100
Basic investigations		$50
Advance investigations and other Back-office support		$60

** Due and payable upon agreement's execution.*

Fed Wire // SWIFT // IAT ACH	Vol.	Fee per Transaction
Fed Wire	All	$9
SWIFT	All	$9
ACH	All	$1.25

Virtual Reference Number // ACH Returns // USDC

Service		Price per Item	Description
Virtual Routing Numbers (VRNs)		$1.00 each	Fixed Monthly price per VRN
ACH return Items	Per item	$3.00	Charge per ACH returned.

USDC On/Off Ramps	Mint	Burn
All	3 bps (0.03%)	3 bps (0.03%)

~~Service: USD Visa Clearing Accounts and USD Reserve Account for Visa Program~~	- - -	~~Fee~~
~~Set-up Fee~~	- -	~~$ 5,000~~
~~Interchange split: 50/50~~	-	
~~Zenus will pass through 100% of network expenses to Program Manager~~	-	
~~Program Manager will maintain a Settlement and Reserve Account with Zenus Bank~~		
~~Program Manager will be responsible for all Network Fees, which Zenus will pass along without markup.~~		
~~Program Manager will maintain a balance of the grater of:~~	-	
~~1. 60-day average gross Payment Volume for seven (7) days~~	-	
~~2. The balance of all outstanding authorizations $50,000 (subject to periodic review)~~		

~~Exhibit A~~

~~PROGRAM SCHEDULE~~

~~Form of Program Schedule~~
~~PROGRAM SCHEDULE NUMBER 1~~

~~COMPANY NAME HERE~~

~~This Program Schedule Number 1 ("**Program Schedule 1**") to the Servicing Agreement ("**Agreement**") is made as of [date] (the "**Commencement Date**") by and between **COMPANY NAME HERE** a **CITY, STATE, COMPANY TYPE HERE** company, having its principal offices at **REGISTRERED ADDRESS HERE** ("**Program Manager**") ("**Program Manager**"), and Zenus Bank International, Inc., having its principal office is located at 252 Ave. Ponce de León, 19th Fl., San Juan, Puerto Rico 00918 ("**Zenus**") (each of Program Manager and Zenus, a "**Party**", collectively, the "**Parties**") with respect to **COMPANY NAME HERE** ("**Client**").~~

~~**1. Terms.** Capitalized terms used but not defined in this Program Schedule 1 will have the meanings given to them in the Agreement. The following capitalized terms used in this Program Schedule 1 shall have the meanings set forth below:~~

~~SCHEDULE-SPECIFIC DEFINED TERMS~~

~~2. Program.~~

*~~i. The **Visa Clearing Account program** includes daily clearing with Visa, where Visa will debit applicable fees directly from the account held by the Program Manager at Zenus Bank. Additionally, a reserve account is maintained at Zenus Bank to serve as a backup funding source if the clearing account lacks sufficient funds to cover Visa debits.~~*

~~*ii.* **USD Visa BIN Sponsorship** Zenus Bank will sponsor the Program Manager under the USD Visa BIN Sponsorship program. The Program Manager is responsible for paying all network fees. The interchange will be split between the Program Manager and Zenus after settlement with Visa.~~

~~3. Fees.~~

~~Service: Visa Clearing Accounts~~

~~i. Onboarding and Due Diligence Fee: $25,000~~

~~ii. Monthly Minimum Fee:~~

~~a.~~

~~Month 1-3~~	~~Waived~~
~~Month 4-6~~	~~$5,000~~
~~Month 7-9~~	~~$10,000~~
~~Month 10+~~	~~$15,000~~

~~iii. Annual Due Diligence: $5,000~~

~~iv. Swift investigations: $100~~

~~v. Basic investigations: $50~~

~~vi. Advance investigations and other Back-office support: $60~~

~~Service: USD Visa Bin Sponsorship~~

~~i. Visa Bin Set-up fee: $5,000~~

~~ii. Interchange split: 50/50~~

~~iii. The Program Manager will maintain a Settlement Account with Zenus and a Reserve~~

~~Account.~~

iv. ~~The Program Manager will maintain a balance of the greater of 60-day average gross payment volume or $100,000 for three (3) days.~~

v. ~~Program Manager will be responsible for all Network Fees, which Zenus will pass along without markup.~~

~~4. **Marks.** The Onboarding Fee, Visa Setup Fee, and Minimum Balance are due upon execution of the contract. The Minimum Monthly Fee becomes payable in the month of the first Visa clearing transaction.~~

~~**5. Term and Termination.**~~

~~(a) Term. The initial term of this Program Schedule 1 shall commence on the Commencement Date and terminate at midnight on the third anniversary of the Commencement Date (the "**Initial Term**"), unless sooner terminated in accordance with the terms hereof. This Program Schedule 1 shall be automatically renewed on the same terms and conditions for successive 3 (Three) year terms (each, a "**Renewal Term**") (the Initial Term, collectively with any Renewal Terms, the "**Term**") thereafter, unless either Party provides written notice to the other Party of its intent not to renew at least 90 (Ninety) days prior to the expiration of the Initial Term or any Renewal Term then in effect.~~

~~(b) **Termination**. Each Party hereby agrees that Program Schedule 1 shall immediately and automatically terminate upon termination or expiration of the Agreement.~~

~~6. **Agreement.** Upon execution by each Party, this Program Schedule 1 shall become attached to and incorporated as a part of the Agreement.~~

~~**7.** Program Schedule 1 shall become attached to and incorporated as a part of the Agreement.~~

~~[Signatures on Following Page]~~

~~**IN WITNESS WHEREOF**, this Program Schedule 1 is executed by the Parties as of the date and year first above written.~~

~~**COMPANY NAME HERE**~~

~~By: ______________________________~~
~~Name: ______________________________ Title: ______________________________~~

~~**Zenus Bank International, Inc.**~~

~~By: ______________________________~~
~~Name: ______________________________~~
~~Title: ______________________________~~